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CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL MEETING

February 23, 2026

WEBVTT

1
00:00:07.470 --> 00:00:08.430
Board Room: Okay.

2
00:00:08.930 --> 00:00:20.180
Board Room: Good evening, everyone. I'm calling to order a special meeting of the Berkeley City Council. Today is February 23rd, 2026. It is 6.04 p.m. Clerk, can you please take the roll?

3
00:00:20.340 --> 00:00:22.230
Board Room: Councilmember Kesterwani.

4
00:00:22.780 --> 00:00:25.310
Board Room: Here. Kaplan? Present.

5
00:00:25.790 --> 00:00:28.100
Board Room: Councilmember Bartlett is absent.

6
00:00:28.790 --> 00:00:31.299
Board Room: Trega? Peasant. O'Keefe?

7
00:00:31.580 --> 00:00:34.739
Board Room: Here. Blackaby? Here. Unapara?

8
00:00:34.880 --> 00:00:35.720
Board Room: Here.

9
00:00:35.860 --> 00:00:50.250
Board Room: Humber? Present. And Mayor Ishii? Here. Okay, quorum is present. Very good. So, we have a few… we had a few different items on our agenda this evening, but the first one has been withdrawn, so we're going to move to item number 2.

10
00:00:50.300 --> 00:01:07.180

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Board Room: So item number 2 is the Zoning Adjustments Board appeal for 2425 Durant Avenue, Use Permit Application ZP2024-0162, and we will start off with a presentation from…

11
00:01:07.450 --> 00:01:14.470
Board Room: our… I was gonna say our Jordan. Jordan! Jordan Klein. Planning Director.

12
00:01:14.820 --> 00:01:31.249
Board Room: Thank you, Mayor Ushi. Good evening, Councilmembers. I'm Jordan Klein, Director of Planning and Development. I'm joined here at the staff table. At the far end, that's Sarah Price, Principal Planner, Nilu Karim Zadigan, Senior Planner, and Ann Hirsch, the Land Use Planning Manager. And Nilu will be presenting for staff.

13
00:01:31.370 --> 00:01:32.659
Board Room: He's taken away Nilu.

14
00:01:46.300 --> 00:01:53.939
Board Room: Actually, as you're gathering that together, I'm gonna do the report-out language, too, because I need to do that from the closed session.

15
00:01:53.940 --> 00:02:08.419
Board Room: So the Mayor and Council met in closed session and formed an ad hoc subcommittee consisting of Mayor Ishii, Vice Mayor Lunapara, and Councilmember Humber Humbert to assist with the recruitment of the next permanent Director of Police Accountability. And that is our report out for closed session. Thank you.

16
00:02:21.360 --> 00:02:22.520
Board Room: Alright.

17
00:02:23.660 --> 00:02:24.900
Board Room: Good evening.

18
00:02:25.370 --> 00:02:30.969
Board Room: My name is Nilu Karim Zadegan, and the project before you is the appeal of the ZAP approval

19
00:02:31.110 --> 00:02:34.450
Board Room: For the project at 2425 Durant Avenue.

20

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00:02:35.040 --> 00:02:40.459
Board Room: The project is to demolish 3 existing residential buildings, including 19 units.

21
00:02:40.620 --> 00:02:49.480
Board Room: And construct a 20-story residential building containing 169 units, including 32 below-market rate units.

22
00:02:54.370 --> 00:02:58.130
Board Room: In this presentation, I will go over the project scope.

23
00:02:58.350 --> 00:03:04.229
Board Room: Project timeline, density bonus information, appeal issues, and staff recommendation.

24
00:03:07.030 --> 00:03:13.389
Board Room: The project site is located to the west side of Telegraph Avenue and to the south of Bancrove Way.

25
00:03:13.580 --> 00:03:17.610
Board Room: within the Residential Southside Mixed Use District, or RSMU.

26
00:03:20.510 --> 00:03:24.840
Board Room: Here is the south elevation of the existing buildings facing Durant Avenue.

27
00:03:25.090 --> 00:03:31.429
Board Room: Three existing two-story residential buildings, including 19 units, are proposed to be demolished.

28
00:03:36.380 --> 00:03:45.109
Board Room: Using state density bonus, the project proposes to construct a 20-story, approximately 149,000 square foot residential building.

29
00:03:45.280 --> 00:03:55.429
Board Room: With 169 units, including 6 extremely low income, 7 very low income, 6 low income, and 13 moderate income units.

30
00:03:57.280 --> 00:04:01.439
Board Room: The proposed building is 20 stories, 208 feet tall.

31
00:04:01.620 --> 00:04:13.529

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Board Room: And major components of the proposed building are 169, units, including 105 studios, 1 1-bedroom, 46 two-bedrooms.

32
00:04:13.690 --> 00:04:18.709
Board Room: 17 3-bedrooms for a total of 249 bedrooms.

33
00:04:19.200 --> 00:04:28.869
Board Room: Ground floor includes the lobby, mailroom, bike parking, as well as residential support facilities. An indoor lounge is provided on level 8,

34
00:04:29.080 --> 00:04:38.260
Board Room: Community spaces on level 13, additional resident lounge on level 17, and a 1,000 square feet roof deck on level 20.

35
00:04:40.610 --> 00:04:45.279
Board Room: In November 2024, The use permit application was submitted.

36
00:04:45.400 --> 00:04:49.420
Board Room: And the SB330 pre-application vested the project.

37
00:04:49.630 --> 00:05:03.850
Board Room: LPC designated the project as a city landmark in March 2025, and Council reversed that decision in July 2025 because the project was vested prior to the landmark designation.

38
00:05:08.400 --> 00:05:21.229
Board Room: The project was approved at ZAB and appealed in October 2025, and is before you tonight. This meeting represents the second public hearing for the proposed project, since the project was deemed complete.

39
00:05:24.350 --> 00:05:32.489
Board Room: Under the City's density bonus procedure, the base project is 85 units, as the maximum allowable density for the site.

40
00:05:32.760 --> 00:05:50.329
Board Room: By providing 13 very low-income and 13 moderate-income units on site, which is 30% of the 85-unit-based density, the project is eligible for a 100% density bonus, or 84 additional units, for a total of 169 units.

41
00:05:52.700 --> 00:05:58.720

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Board Room: This… Excuse me. This project is requesting three concessions on a number of waivers.

42
00:05:58.840 --> 00:06:08.650
Board Room: Concessions required for the… requested for the project are apprenticeship requirement, healthcare expenditure, and prevailing wages.

43
00:06:08.920 --> 00:06:20.489
Board Room: Waivers requested on this project are removal of a coast live oak tree, usable open space, floor area ratio, height, setback, and bike parking.

44
00:06:24.560 --> 00:06:38.889
Board Room: On October 28, 2025, the Building and Construction Trade Council of Alameda County and the Northern California Carpenters Regional Council filed an appeal of the ZAP's decision to approve the project.

45
00:06:42.350 --> 00:06:44.010
Board Room: Appellant's detail…

46
00:06:44.330 --> 00:06:55.159
Board Room: appeal letter is attached to the staff report, and here I have a summary of the appeal points, and I will go over each point separately, and staff response.

47
00:06:55.760 --> 00:06:57.270
Board Room: Appeals to 1.

48
00:06:58.070 --> 00:07:01.830
Board Room: The provisions regarding apprenticeship requirements.

49
00:07:02.030 --> 00:07:09.760
Board Room: And healthcare expenditure are not appropriate subject of a concession, because they do not pertain to development standards.

50
00:07:10.270 --> 00:07:30.049
Board Room: Staff responds is that a concession can be used to reduce the cost of building affordable housing, and according to the definition of a concession, a concession can be a reduction in site development standards, or a modification of a zoning code requirement, or any other regulatory incentive.

51
00:07:32.860 --> 00:07:34.600

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Board Room: Appeal issue number 2.

52
00:07:35.330 --> 00:07:42.179
Board Room: The requested concessions would not result in identifiable and actual cost reduction.

53
00:07:42.350 --> 00:07:58.000
Board Room: Staff responds is that, according to the applicant, the requested consistent for exemption from the apprenticeship requirement, healthcare expenditure, and prevailing wages would result in cost saving as presented.

54
00:07:59.540 --> 00:08:12.839
Board Room: The city could reject the concession upon finding that they would not result in identifiable and actual cost reduction. However, the requested concessions would result in identifiable and actual cost

55
00:08:13.070 --> 00:08:31.760
Board Room: For a total cost reduction of $16,560,000 for the applicant. And the city has no information to make any finding otherwise. Therefore, the city cannot make a finding based on substantial evidence that this exception applies.

56
00:08:33.789 --> 00:08:35.670
Board Room: Appeal issue number 3.

57
00:08:36.210 --> 00:08:50.310
Board Room: The concessions would have a specific adverse impact upon public health and safety. Staff responses that the city may deny concessions only if it can make findings supported by substantial evidence.

58
00:08:50.370 --> 00:09:06.309
Board Room: that the concessions would cause a specific adverse impact on public health or safety. State law defines specific adverse impact as a significant, quantifiable, direct, and unavoidable impact.

59
00:09:06.470 --> 00:09:14.109
Board Room: Based on objective written health or safety standards in effect when the application was deemed complete.

60
00:09:14.170 --> 00:09:26.730
Board Room: Staff concludes that appellants have not provided sufficient evidence showing that concessions would create such an impact, and the

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city itself does not have other evidence that would support making this finding.

61
00:09:26.810 --> 00:09:34.279
Board Room: Therefore, staff advise that the City cannot make a finding based on substantial evidence that this exception applies.

62
00:09:34.780 --> 00:09:41.530
Board Room: For reasons stated in Appeal Point 1, 2, and 3, staff find that these concessions are…

63
00:09:41.630 --> 00:09:47.840
Board Room: Appropriate, and that the city cannot make the factual finding necessary to deny them.

64
00:09:50.910 --> 00:10:01.910
Board Room: Finally, it has come to our attention that there was a typographical error in the conditions of approval for the project at 2425 Durant Avenue.

65
00:10:02.080 --> 00:10:05.570
Board Room: Condition number 65 was cut off.

66
00:10:05.880 --> 00:10:12.879
Board Room: The full text of the condition should read as, Rooftop projections.

67
00:10:13.000 --> 00:10:26.399
Board Room: No additional rooftop or elevator equipment shall be added to exceed the approved maximum roof height without submission of an application for use permit modification, subject to board review and approval.

68
00:10:26.730 --> 00:10:32.990
Board Room: And then the subsequent conditions should be renumbered 66 through 70.

69
00:10:33.190 --> 00:10:39.840
Board Room: We request that Council's action on this item, if it is approved, reflect this correction.

70
00:10:41.330 --> 00:10:54.360

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Board Room: Tonight, staff recommends that Council conduct a public hearing and adopt a resolution to deny the appeal and approve the use permit ZP2024-0162. Thank you.

71
00:10:55.690 --> 00:11:05.159
Board Room: Thank you very much. I want to allow, for the appellant and applicant to give their 5-minute presentations,

72
00:11:05.880 --> 00:11:09.929
Board Room: But I actually do want to see if there are any questions from the Council before.

73
00:11:14.350 --> 00:11:15.530
Board Room: And…

74
00:11:17.170 --> 00:11:22.609
Board Room: If there are no questions, I'll move on to the appellant. You will have 5 minutes to present.

75
00:11:24.590 --> 00:11:28.440
Board Room: And, applicant, if you could just be ready in the wings. Thank you.

76
00:11:54.110 --> 00:12:05.109
Board Room: Good evening, Mayor Ishii and members of City Council. My name's Jolene Kramer. I'm an attorney with Weinberg, Roger, and Rosenfeld, and we represent the Building Trades Council.

77
00:12:05.110 --> 00:12:16.800
Board Room: and the carpenters in, making this appeal tonight. We appreciate you hearing it. I'm gonna try and go through the issues as quickly as I possibly can, given the 5-minute time limitation.

78
00:12:17.690 --> 00:12:36.790
Board Room: As you can see from slide 1, we actually filed appeals on 3 different projects. Scott Littlehale from the Carpenters will be presenting on the 2029 University project, and I understand 2298 is no longer at issue, so I'll be addressing the 2225 Durant project primarily. However, the same arguments do apply

79
00:12:36.790 --> 00:12:48.569
Board Room: with respect to the concessions requested on 22… on 2029 University, with the exception of the prevailing wage issue, which was not one of the concessions sought for 2029 University.

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80
00:12:49.840 --> 00:13:05.019
Board Room: In all three of these cases, the project applicants are requesting concessions under the density bonus law that would effectively exempt their projects from compliance with labor standards that the City of Berkeley specifically adopted for large-scale development projects.

81
00:13:05.050 --> 00:13:19.410
Board Room: Specifically, the applicants, and this applies to 2425 Durant, has requested waivers of the prevailing wage requirement in the Southside Plan, the healthcare expenditures requirement in the hard hats ordinance, and the apprenticeship participation requirement in the hard hats ordinance.

82
00:13:19.880 --> 00:13:25.420
Board Room: Each project applicant requested a different mix of concessions, but I included at least two of these.

83
00:13:25.550 --> 00:13:41.509
Board Room: I'm going to show this slide at the end as well, but these are the three outcomes that we requested, from City Council in considering our appeal. There are different alternatives that you could consider. One would be to reverse the decisions of the ZAB, approving the use permits with the proposed concessions.

84
00:13:41.760 --> 00:13:48.369
Board Room: One would be reversing the decisions of the ZAB only with respect to the concessions, but approving the remainder of the use permit.

85
00:13:48.970 --> 00:13:57.450
Board Room: And the third would be remanding to the ZAB to reconsider the applications and confer with the applicant regarding the grounds for its requested concessions.

86
00:13:57.710 --> 00:14:11.530
Board Room: For 2425 Durant, the applicant, yes, Duffy Architects, has applied for a use permit that includes these, concessions. I won't go over them again, we've already discussed them, the apprenticeship, the healthcare, and the prevailing wage requirements.

87
00:14:13.100 --> 00:14:22.829
Board Room: The apprenticeship and healthcare pieces are part of the City's Hard Hats ordinance, which was adopted on May 2nd, 2023, and became effective on January 1, 2024.

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88
00:14:22.850 --> 00:14:33.220
Board Room: And item number 3, the prevailing wage requirement, is part of the City Southside Plan, as amended and adopted in November of 2023. All of these requested concessions should be denied.

89
00:14:33.330 --> 00:14:42.660
Board Room: The city should not grant concessions under the density bonus law that waive local labor standards. This is a novel and unorthodox strategy

90
00:14:43.010 --> 00:15:01.659
Board Room: to use the density bonus law to undermine local ordinances that promote worker retention and worker well-being. Prior to 24-25 Durant, no project had received a concession related to hardhats or the Southside Plan, and we have confirmed that through Public Record Act requests, which were attached to one of our appeals letters.

91
00:15:02.470 --> 00:15:21.230
Board Room: The density bonus law defines a concession or consentive as either a reduction in site development standards, approval of mixed-use zoning, or other regulatory incentives or concessions that result in identifiable and actual cost reductions to provide for affordable housing costs or for rents to be set at the statutory rate.

92
00:15:21.230 --> 00:15:28.979
Board Room: And of these options, it's only the third that we believe would arguably apply. We're not claiming it's a reduction in site development standards.

93
00:15:29.200 --> 00:15:36.029
Board Room: However, even if a concession could result in identical and actual cost reductions, the city can deny that.

94
00:15:36.110 --> 00:15:51.569
Board Room: If the concession, if one of the following applies. If the concession would not actually result in cost reductions to provide for affordable housing, the concession would have a specific adverse impact upon health and safety, or it would be contrary to state and federal law.

95
00:15:52.440 --> 00:16:06.090
Board Room: Perhaps more importantly, the original legislative intent of the density bonus law was to allow developers to build more affordable units as a social good. Allowing a developer to avoid a labor standards requirement would do the opposite.

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96
00:16:06.250 --> 00:16:09.219
Board Room: I'm just gonna move a little quickly, because I know I'm running out of time.

97
00:16:11.430 --> 00:16:26.289
Board Room: The, concession as to the Southside Plant's prevailing wage requirement is, frankly even more offensive to public policy because it reduces worker wages and makes the housing they are building even less affordable to them, which is antithetical to the density bonus law's, purpose.

98
00:16:26.390 --> 00:16:45.079
Board Room: The density bonus law should not be misused to allow developers to avoid labor standards or other societal benefits, especially when there has been no demonstration of an actual financial benefit. As we argue in our letter, the city can and should request reasonable documentation to support the concessions that's allowed for in the statute.

99
00:16:45.110 --> 00:16:56.590
Board Room: and under case law. Here, in their application, the applicant did not provide any evidence or information to substantiate their requested concessions. I'll say, given the importance to the city of the high…

100
00:16:57.370 --> 00:17:12.250
Board Room: Can I just… I'll finish your sentence. Finish this, okay. Of the high labor standards and the hard hats and the Southside Plan, the city should exercise its right to seek information from the applicant, requiring them to make some showing as to how their requested concessions would actually save development costs

101
00:17:12.280 --> 00:17:21.159
Board Room: And allow them to build more affordable housing. In conclusion, we would like you to approve the projects without the requested concessions. Thank you so much.

102
00:17:22.660 --> 00:17:25.790
Board Room: Applicant, you all have 5 minutes to present.

103
00:18:21.540 --> 00:18:24.660
Board Room: Good evening, Madam Mayor, members of City Council.

104

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00:18:24.770 --> 00:18:44.069
Board Room: I want to thank you all for the time this evening, and staff, for the enormous amount of time, helping us get to this point. This is a difficult evening, we understand that. I'm going to turn it over to, Todd Williams right here. He's our legal counsel, for the project.

105
00:18:44.190 --> 00:18:57.299
Board Room: Staff did a wonderful job of laying out the issues here tonight. I won't belabor them, so, I will, let Todd, go ahead and take over at this point. And I'll come back at the end.

106
00:18:58.670 --> 00:19:18.220
Board Room: Great. Thank you, Mayor and Council Members. Again, I'm going to echo what Mark just said. I think the staff report does a really great job of setting out the factual and legal structure, and we believe staff's recommendations should be followed. I'm going to focus on a few quick topics, namely the nature of density bonus concessions and why approval in this instance is mandatory.

107
00:19:18.270 --> 00:19:27.110
Board Room: Let's see, as was discussed before, $16.5 million worth of cost savings, resulting from these three requested concessions.

108
00:19:27.580 --> 00:19:28.829
Board Room: Let's go to the next slide.

109
00:19:29.040 --> 00:19:46.909
Board Room: So, concessions. So they're defined three different ways in the density bonus law. The two that are relevant here is a reduction of development standards, and this is including but not limited to, basically regulatory requirements that result in identifiable and actual cost reduction.

110
00:19:47.290 --> 00:20:00.530
Board Room: The third and very broad definition of concession is other regulatory incentives or concessions proposed by the developer, again, that result in actual and identifiable cost reductions. Go ahead to the next slide.

111
00:20:01.540 --> 00:20:06.910
Board Room: So, what is a development standard? So, a development standard is not just

112
00:20:07.010 --> 00:20:18.200

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Board Room: zoning, height, setback, parking ratios. It is a site or construction condition that applies to any residential development pursuant to any ordinance.

113
00:20:18.200 --> 00:20:34.129
Board Room: Could be a general plan, could be a specific plan, charter, any local condition, law, policy, resolution, or regulation that is adopted by the local government. It doesn't need to reside in the zoning code to be eligible to be, for a concession to be used.

114
00:20:34.130 --> 00:20:48.070
Board Room: And additionally, the state density bonus law requires that the city, anyone interpreting it, interprets it in a way that is liberally in favor of producing the maximum amount of housing.

115
00:20:50.070 --> 00:20:51.050
Board Room: So…

116
00:20:51.460 --> 00:21:06.710
Board Room: the… both HCD, the Department of Housing and Community Development, and Case Law have weighed in on issues relevant to tonight. Specifically, there was a case in San Jose where HCD issued a technical memo

117
00:21:06.710 --> 00:21:14.449
Board Room: And it discussed the breadth of a concession, and it found that the definition of concession is, quote, intentionally broad.

118
00:21:14.670 --> 00:21:21.140
Board Room: And the definition clearly indicates that requirements beyond development standards are eligible as concessions.

119
00:21:22.450 --> 00:21:38.850
Board Room: again, it's identifying regulatory requirements that result in identifiable and actual cost savings. In that case, the eligible concessions were a waiver of a requirement to replace demolished commercial space with other commercial space.

120
00:21:38.850 --> 00:21:51.099
Board Room: as well as using the city as a bonding… as the issuer of bonds for multifamily development. So those were both found to be, eligible to be used… for concessions to be used on.

121
00:21:55.850 --> 00:21:59.359

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Board Room: I also want to point out, in terms of development standard.

122
00:21:59.540 --> 00:22:16.820
Board Room: Appellate's first slide, Appellate Council just said that Hardhats and Southside prevailing Wage were specifically adopted for large-scale development. These are development standards. They only apply to development larger than… or 50,000 square feet or larger.

123
00:22:16.910 --> 00:22:23.630
Board Room: So clearly, it's both a development standard, and it falls into that broader sort of catch-all definition of regulatory incentive.

124
00:22:23.760 --> 00:22:30.739
Board Room: Finally, I'll just touch briefly on… let's go to the next slide. Oh, I'm sorry, back one.

125
00:22:30.840 --> 00:22:41.910
Board Room: basis to deny. So, we've already talked about one basis is, are there actual cost savings? Clearly, that's… there are. So, the only other basis would be…

126
00:22:41.940 --> 00:22:53.190
Board Room: A specific adverse impact on public health and safety that can't be mitigated, and it has to be based on objective, identified, written public health and safety standards, policies, or conditions.

127
00:22:53.390 --> 00:22:59.819
Board Room: And the Housing Accountability Act states that such instances are infrequent.

128
00:23:00.580 --> 00:23:13.029
Board Room: Here, what's being relied on are statistical connections and national numbers, not a specific health and safety standard that resides in the Berkeley Code.

129
00:23:13.460 --> 00:23:19.610
Board Room: without that, There simply is not the evidence to support a finding, of denial.

130
00:23:20.170 --> 00:23:24.140
Board Room: And I'll just share this slide with you. In addition to the…

131
00:23:24.310 --> 00:23:36.729

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Board Room: dwelling units and affordable units for this project, revenues will be generated, by these projects if they're feasible to develop. We're happy to answer any questions you might have. Thank you.

132
00:23:37.070 --> 00:23:49.790
Board Room: Thank you both. So, Council, do you have any questions? And for the, appellant's attorney, if you want to come up, just in case you have questions, so you don't have to go back and forth, that might be easier. Questions?

133
00:23:50.900 --> 00:24:09.150
Board Room: Yes, Councilmember Blackaby. Thanks, Madam Mayor. Question for the, applicants. You know, a lot of the appellant's, argument comes down to whether, the concessions result in identifiable and actual cost reductions.

134
00:24:09.310 --> 00:24:25.090
Board Room: you've certainly kind of come to us with numbers on what the apprenticeship requirements cost, healthcare, prevailing wage. Can you talk to us about how you've developed them? Like, take us to the next level there. Are you looking at, the staff, the staffing that you're expecting?

135
00:24:25.300 --> 00:24:35.249
Board Room: and the costs for that versus… anyway, just help us… I'm just trying to understand how you come to these numbers, just to kind of, like, go a level or two deeper. It's science and art.

136
00:24:35.520 --> 00:24:54.579
Board Room: at this stage in the project, there's a lot of time spent looking at what the construction costs are going to be. Our team has spent an extraordinary amount of time, because right now, high-rise development is very difficult to put together from a financial feasibility perspective.

137
00:24:54.600 --> 00:24:58.940
Board Room: These numbers are based on actual bids

138
00:24:59.230 --> 00:25:18.650
Board Room: By union signatory and non-union contractors on the same projects in other places. And actually some here in Berkeley. And so this is… that's where we got the numbers from, is the pure, straight-up finding, based on our actual experience in the field. Okay. And so,

139
00:25:18.830 --> 00:25:24.450

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Board Room: Will… will… would staff… would… would folks who are staffing the project be receiving…

140
00:25:24.540 --> 00:25:39.889
Board Room: healthcare just at a lower cost, or… let me just drill on the healthcare piece a little bit. I would love, let's see, yes, healthcare, costs are often provided, for laborers for these projects.

141
00:25:40.510 --> 00:25:44.930
Board Room: Unemployment insurance benefits for non-union laborers are provided.

142
00:25:46.600 --> 00:25:54.659
Board Room: Competitive wages are provided, quite frankly, because if you're not paying your workers a good salary here, they're gonna go work for somebody else. This is a crowded market.

143
00:25:55.210 --> 00:26:04.890
Board Room: for, for labor. And so I, you know, I know the unions want you to think that non-union labor is

144
00:26:05.240 --> 00:26:16.979
Board Room: sort of the end of the world, and will destroy the community, but quite frankly, none of the housing projects in Berkeley over the last 30 years have been built with union labor, save one or two affordable housing projects.

145
00:26:17.620 --> 00:26:24.860
Board Room: Would you expect that some proportion of the project would be staffed by union labor, some, or… Absolutely.

146
00:26:25.380 --> 00:26:33.110
Board Room: Part of the issue here is this is an extreme upfront cost that's, difficult, impossible, to commit to.

147
00:26:33.430 --> 00:26:35.890
Board Room: A project like this is going to

148
00:26:36.210 --> 00:26:45.679
Board Room: most likely include concrete and steel labor, union labor, and others, perhaps. But yes, there will be union labor on this project, just like

149

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00:26:45.860 --> 00:26:49.010
Board Room: most of the other projects that are being built in Berkeley right now.

150
00:26:49.370 --> 00:27:05.740
Board Room: And the biggest delta is really on the prevailing wage piece, so it's just… it's… the expectation in terms of what the bids you're expecting on wage, the delta there is the biggest, right? I mean, in terms of all the pieces. And again, so you have specific numbers in mind in terms of…

151
00:27:06.180 --> 00:27:18.670
Board Room: rates you were looking at for different roles and responsibilities through these other projects versus what you would have to pay on the prevailing wage basis? That's correct. Okay, and you did all… Based on those contractor bids. Right.

152
00:27:18.740 --> 00:27:26.740
Board Room: taking that and extrapolating at times the amount of labor and the number of hours that would be consumed by this project, and kind of working it through. Correct. Okay. All right. Thank you.

153
00:27:28.420 --> 00:27:30.470
Board Room: Thank you. Councilmember Taplin.

154
00:27:32.720 --> 00:27:34.720
Board Room: Thank you. For staff?

155
00:27:35.040 --> 00:27:38.809
Board Room: Of the five meetings, which number is this one tonight?

156
00:27:40.950 --> 00:27:43.549
Board Room: It's meeting number 2. This is meeting number 2.

157
00:27:43.650 --> 00:27:50.739
Board Room: And then for the, appellant and applicant, could you each describe efforts to date to resolve the various points of contention?

158
00:27:51.220 --> 00:27:54.080
Board Room: To do what, I'm sorry? To achieve resolution.

159
00:27:55.550 --> 00:28:02.990

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Board Room: Well, the ordinance is, plain language. There's not a way to come up with another solution. You're either subject to the ordinance, or you aren't.

160
00:28:04.410 --> 00:28:09.970
Board Room: You know, in the old days, you might have continued a meeting to have us sit down with labor, and…

161
00:28:10.410 --> 00:28:13.049
Board Room: try to hammer something out, and I think that was…

162
00:28:13.440 --> 00:28:25.330
Board Room: less often successful, but in this case, that's just not the case anymore. You've got an ordinance that's been adopted, is in effect. These are the first projects to be subject to them.

163
00:28:25.480 --> 00:28:31.219
Board Room: Since, they were put in place, and projects filed their SB330 applications.

164
00:28:31.420 --> 00:28:36.200
Board Room: But there's no negotiating out of the plain language of the city's ordinance.

165
00:28:42.060 --> 00:28:55.350
Board Room: Thank you, Councilmember Taplin, for the question. I don't believe that there have been meaningful attempts to try and reach a resolution of this, primarily because the developer, as they've just explained to you, is not willing

166
00:28:55.350 --> 00:29:06.340
Board Room: to implement high labor standards on these projects. They're not willing to require a prevailing wage. They're certainly not willing to require healthcare.

167
00:29:06.470 --> 00:29:08.620
Board Room: For the workers on the project.

168
00:29:09.110 --> 00:29:14.019
Board Room: In response to Councilmember Blacko B's question, I mean, you heard it's just…

169
00:29:14.480 --> 00:29:16.959

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Board Room: It's just, they get it if they get it.

170
00:29:17.750 --> 00:29:23.140
Board Room: And because they're not… they're prioritizing the cost savings over these.

171
00:29:23.530 --> 00:29:26.890
Board Room: Labor standards, then there is really no meaningful…

172
00:29:27.100 --> 00:29:29.529
Board Room: Resolution of this with the developer.

173
00:29:30.610 --> 00:29:31.380
Board Room: Thank you.

174
00:29:32.480 --> 00:29:34.629
Board Room: Thank you. Councilmember Bartlett?

175
00:29:35.400 --> 00:29:36.629
Board Room: Thank you, Madam Mayor.

176
00:29:36.740 --> 00:29:39.200
Board Room: And, a couple questions here,

177
00:29:39.420 --> 00:29:44.419
Board Room: For the staff, and I guess, who I can answer, you can all answer this, you know, you've all researched it, I heard some…

178
00:29:44.570 --> 00:29:49.339
Board Room: Conflicting, information around the, the density bonus law.

179
00:29:49.440 --> 00:29:53.240
Board Room: And it's used before, any kind of precedent.

180
00:29:53.350 --> 00:29:55.540
Board Room: To be used for these waivers.

181
00:29:58.160 --> 00:29:58.940
Board Room: Can you…

182

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00:30:04.070 --> 00:30:06.299
Board Room: You mean the concessions?

183
00:30:06.940 --> 00:30:10.880
Board Room: This is… 2425 Doran is the first project.

184
00:30:11.110 --> 00:30:13.620
Board Room: That's requesting these concessions.

185
00:30:15.430 --> 00:30:19.970
Board Room: Okay. Well, maybe the, the, the,

186
00:30:20.630 --> 00:30:29.160
Board Room: the challenger. You mentioned this was a novel use of the density bonus law. Can you expand on that, please?

187
00:30:33.020 --> 00:30:47.399
Board Room: Sure, so certainly it's true. Hard hats became effective January 1 of 2024, and the prevailing wage requirements and the Southside Plan became effective in November of 2023. That being said, we do not know

188
00:30:47.470 --> 00:30:53.729
Board Room: of the density… of other instances of the density bonus law, the state density bonus law.

189
00:30:53.840 --> 00:30:57.680
Board Room: Being used in order to avoid labor standards.

190
00:30:57.940 --> 00:31:04.190
Board Room: That is not something we have seen before. It is honestly not something that we anticipated.

191
00:31:04.380 --> 00:31:12.789
Board Room: Former, Mayor Aragin, who was mayor when the legislation was adopted, expressed that in his letter to you all.

192
00:31:13.020 --> 00:31:18.489
Board Room: That he did not foresee this type of use of the density bonus law.

193
00:31:18.680 --> 00:31:24.999

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Board Room: In order to avoid prevailing wage, in order to avoid healthcare, in order to avoid apprentice training.

194
00:31:25.210 --> 00:31:29.179
Board Room: So, in his mind, it was novel, it was unexpected.

195
00:31:29.500 --> 00:31:40.709
Board Room: And in our minds, it is also novel, as well, as I said, we've not seen the density bonus law used in this way for any development project that we've encountered before.

196
00:31:43.140 --> 00:31:46.040
Board Room: Thank you for the question, Councilmember. It's a really good question.

197
00:31:47.340 --> 00:31:59.410
Board Room: concessions haven't been used on labor standards for private development projects before, because Berkeley is the only city, and I'm happy to be disabused of this, but Berkeley is the only city in California that has such standards.

198
00:31:59.540 --> 00:32:02.029
Board Room: You might ask yourselves why that's the case.

199
00:32:02.600 --> 00:32:05.699
Board Room: But, were these standards to apply?

200
00:32:05.990 --> 00:32:21.070
Board Room: across the board, we'd frankly stopped building housing in Berkeley because it wouldn't be feasible anymore. We're still in the midst of a state housing crisis, and I'm a housing-first person, so if a contractor's, qualified, they should build the housing.

201
00:32:23.770 --> 00:32:26.550
Board Room: Thank you for your questions. Councilmember O'Keefe.

202
00:32:29.170 --> 00:32:45.209
Board Room: Thank you, Mayor. This question is for staff, either city attorney or planning staff, whoever wants to answer it. So this is a novel issue we're hearing tonight regarding this particular use of concessions, but, this is not the first controversial concession that we've talked about.

203

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00:32:45.360 --> 00:32:59.110
Board Room: And I'm wondering if you could help us on the Council understand what is the typical standard of evidence that we ask applicants, to provide, to show that a concession represents an identifiable and actual cost reduction?

204
00:33:01.560 --> 00:33:09.610
Board Room: The city can require reasonable documentation, such as documentation of cost reduction.

205
00:33:10.100 --> 00:33:19.429
Board Room: The city may not require information that incentive is necessary to make the project economically feasible.

206
00:33:20.670 --> 00:33:37.789
Board Room: They cannot require that they show that it's economically feasible. Correct. Okay, thank you. And you said, sorry, you said they can require documentation of what… what was that? Cost reduction. Of cost reduction. In your opinion, have they… has the applicant provided that in this case? Or is there…

207
00:33:38.140 --> 00:33:41.349
Board Room: More that you think would be appropriate. Yes.

208
00:33:43.570 --> 00:33:46.629
Board Room: Yes. Yes. Yes, okay. Yes. Alright, thank you.

209
00:33:48.180 --> 00:33:50.430
Board Room: Thank you. Councilmember Tregup?

210
00:33:51.270 --> 00:33:53.820
Board Room: Thank you, Madam Mayor.

211
00:33:54.610 --> 00:33:58.630
Board Room: Both questions are for staff, one and

212
00:33:59.040 --> 00:34:05.870
Board Room: I apologize if I missed this in the presentation, but, are there any,

213
00:34:07.080 --> 00:34:11.679
Board Room: Edits contemplated in what we're being asked to approve.

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214
00:34:14.909 --> 00:34:15.699
Board Room: Oh.

215
00:34:20.360 --> 00:34:21.190
Board Room: Yeah, huh?

216
00:34:22.429 --> 00:34:41.430
Board Room: She read it at the conclusion of the presentation. Yes, so she noted there was an error in condition number 5065. She read the correction into the record, and we just request that Council's action reflect the correction that Nilu read into the record at the conclusion of her presentation. Thank you. Okay, thank you.

217
00:34:41.429 --> 00:34:51.249
Board Room: And then my… probably more… Apropos question, given the questions being raised on appeal.

218
00:34:51.880 --> 00:35:00.300
Board Room: Is there any, documentation of How these costs

219
00:35:00.650 --> 00:35:06.529
Board Room: Associated with the three, concessions being requested.

220
00:35:07.070 --> 00:35:14.269
Board Room: How they stack up against other, development fees or requirements.

221
00:35:16.570 --> 00:35:17.860
Board Room: I can feel that.

222
00:35:23.360 --> 00:35:30.200
Board Room: You can't turn yours off. Nope, no, don't touch it. Thank you. Sorry, it's tricky up here.

223
00:35:31.500 --> 00:35:33.650
Board Room: So last year, the city,

224
00:35:34.070 --> 00:35:46.029
Board Room: engaged, and this was in response to direct from City Council, engaged street-level advisors and strategic economics to help us analyze the impacts of this policy on housing feasibility.

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225
00:35:46.240 --> 00:35:55.309
Board Room: If I recall correctly, They estimated that,

226
00:35:55.420 --> 00:35:59.059
Board Room: It would increase construction costs by approximately 20%.

227
00:35:59.600 --> 00:36:03.310
Board Room: And… they…

228
00:36:03.710 --> 00:36:13.510
Board Room: They did compare… put that into context with our public art and private development policy, which was also part of that analysis.

229
00:36:13.770 --> 00:36:23.209
Board Room: The city doesn't really have other impact fees beyond… beyond our inclusionary requirement. There is the…

230
00:36:23.530 --> 00:36:30.969
Board Room: Streets and Open Space Improvement Plan fee that only applies to projects in the downtown area plan. But, the city…

231
00:36:31.170 --> 00:36:39.999
Board Room: Doesn't have, you know, a citywide transportation impact fee, or an open space fee, or a public safety fee, like some other cities have.

232
00:36:41.560 --> 00:36:53.159
Board Room: Okay, and do you remember, I take it you're referring to the 1% for public art requirement, do you recall what percentage of,

233
00:36:53.480 --> 00:36:58.460
Board Room: cost increase that accounted for? Yeah, so that is,

234
00:36:59.560 --> 00:37:08.770
Board Room: 1.75% of construction costs, if the applicant chooses to include art on-site, or 0.8%

235
00:37:09.190 --> 00:37:12.369
Board Room: Of construction costs if the applicant chooses to pay the in-lieu fee.

236

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00:37:14.780 --> 00:37:19.859
Board Room: Oh, okay. And then the… in Luffy… well…

237
00:37:22.120 --> 00:37:33.699
Board Room: Since this is a density bonus project, we would not be accounting for the, affordable housing mitigation fee on this project.

238
00:37:39.160 --> 00:37:43.439
Board Room: Affordable Housing Inclusionary section does apply.

239
00:37:43.630 --> 00:37:45.869
Board Room: to the project, and I have the numbers.

240
00:37:46.580 --> 00:37:54.479
Board Room: So what I mean is… Since the affordable housing is being built on-site,

241
00:37:54.790 --> 00:38:01.619
Board Room: what is the amount, if any, on this project that is going into the Housing Trust Fund?

242
00:38:02.740 --> 00:38:10.110
Board Room: It's the 20%, of the proj… the total.

243
00:38:12.120 --> 00:38:20.279
Board Room: So, I believe the project is including… is it… it's certainly at least 15%, but I believe there are replacement

244
00:38:20.470 --> 00:38:23.990
Board Room: Units being demolished, and so that totaled 20% of the units.

245
00:38:24.350 --> 00:38:35.579
Board Room: 20% of the base? So, yes, it's satisfying the inclusionary policy via on-site affordable housing units, that's right. Yeah, and I'm sorry, my question is different.

246
00:38:36.040 --> 00:38:37.420
Board Room: Is there

247
00:38:37.610 --> 00:38:48.449

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Board Room: Because the inclusionary requirement is being met, there is no additional money going into the Housing Trust Fund, correct? That is correct. Thank you.

248
00:38:51.270 --> 00:38:53.219
Board Room: Okay, Vice Mayor Lenopara.

249
00:38:53.980 --> 00:39:01.409
Board Room: Thank you. I just have a really quick question. Do you mind pulling up the presentation that was just up with the numbers?

250
00:39:01.670 --> 00:39:05.020
Board Room: Financial, I think theirs.

251
00:39:05.930 --> 00:39:09.619
Board Room: I'm curious, about the property tax.

252
00:39:10.090 --> 00:39:14.799
Board Room: Piece, if staff thinks that that's an accurate reflection of what

253
00:39:15.150 --> 00:39:17.929
Board Room: The property tax would be for that property.

254
00:39:20.810 --> 00:39:30.189
Board Room: We show the property tax, elevating from $66,000 a year to approximately, $1,645,000 a year.

255
00:39:31.260 --> 00:39:37.020
Board Room: I think that likely includes the county's portion. That's the whole tax bill. Right.

256
00:39:37.370 --> 00:39:42.300
Board Room: Right, so the city's portion would be a little less than a third of that.

257
00:39:43.730 --> 00:39:47.079
Board Room: Makes sense. That sounds… that looks right? Yeah. Okay, it does. Thank you.

258
00:39:47.260 --> 00:39:56.099

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Board Room: That's it. That's a good flag, because I think people expect that we get all of those property taxes, and we don't. So, Councilmember Barley, did you have a follow-up question?

259
00:39:56.310 --> 00:40:00.390
Board Room: Thank you, and I was asked earlier, but a question…

260
00:40:00.960 --> 00:40:10.220
Board Room: I guess for maybe our team, or the city attorney, or maybe the attorneys here, the… the social good, exemption for…

261
00:40:10.400 --> 00:40:14.190
Board Room: denying… A waiver. What's that about?

262
00:40:16.040 --> 00:40:26.290
Board Room: I saw it come up in your presentation. I think that was the appellant's presentation, I think. But she cited the actual state law, right? No.

263
00:40:26.410 --> 00:40:33.539
Board Room: The words social good do not appear anywhere in the density bonus law. There's not an exemption for something that is, a social good.

264
00:40:34.100 --> 00:40:35.669
Board Room: Okay, can I hear from the appellant?

265
00:40:39.440 --> 00:40:44.029
Board Room: Thank you. We did make some policy arguments in our letter.

266
00:40:44.710 --> 00:40:50.030
Board Room: That the… rationale for the hard hats ordinance.

267
00:40:50.490 --> 00:40:58.460
Board Room: was to… provide healthcare Apprenticeship, and training.

268
00:40:58.510 --> 00:41:11.259
Board Room: to workers, and that those sorts of social goods are consistent with the state density bonus law. In other words, the state density bonus law is intended to build affordable housing.

269
00:41:11.310 --> 00:41:18.699

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Board Room: So it's a progressive statute. It's supposed to enable more people to get into affordable housing.

270
00:41:18.920 --> 00:41:27.090
Board Room: And it's ironic that the applicant is using the state density bonus law to undermine

271
00:41:27.360 --> 00:41:32.310
Board Room: The wages, and working conditions, and training, and…

272
00:41:32.480 --> 00:41:49.919
Board Room: healthcare of the people who would be building this project, because the point of the density bonus law and the point of the concessions is to promote a social good by building more affordable housing. That's the point that we were making. Thank you for the question. Thank you.

273
00:41:51.410 --> 00:41:53.169
Board Room: Any additional questions?

274
00:41:53.790 --> 00:42:08.409
Board Room: Okay, we will then move on to our public comments. So, if you have a public comment on item number 2, which is the Zoning Adjustments Board Appeal for 2425 Durant Avenue, please come on up.

275
00:42:16.640 --> 00:42:17.960
Board Room: Good.

276
00:42:18.580 --> 00:42:27.980
Board Room: Hi, good evening. I'm here to encourage the Council to move forward with these housing developments. We're in a housing crisis in Berkeley, and we badly need them.

277
00:42:27.980 --> 00:42:40.710
Board Room: I would like to call your attention to the fact that after the Hard Hats ordinance was passed in, I think, 2023, there was a demonstrable plummeting of housing development in our city as soon as that law went into effect.

278
00:42:40.710 --> 00:42:47.890
Board Room: We can see the impact that this is having on the amount of homes that are being built in our city, badly needed homes.

279

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00:42:47.890 --> 00:42:53.570
Board Room: And I just, I really think it's very unfortunate that we have a special interest group here that's,

280
00:42:53.570 --> 00:43:13.559
Board Room: you know, encouraging you all to deny this application on the grounds that, they'd like to feather bed their own, salaries and benefits, when in fact, like, we… you know, the city of Berkeley, the broader population of this city needs these homes, and, you know, it's setting aside the fact that if you deny these…

281
00:43:13.560 --> 00:43:23.790
Board Room: You know, if you deny these housing developments being produced, we're going to be subject to a lawsuit… Thank you. …that the city is very likely to lose, so please pass this. Thank you.

282
00:43:24.230 --> 00:43:42.870
Board Room: Okay, for those of you that are new here, just since there are so many folks, I'm very strict on time, so you'll have one minute to give your public comment. Go ahead. Thank you, Mayor. My name is Vince Segrew, and I'm with the Special Interest Group of Helping Disadvantaged communities make it into the middle class through a good union construction career. It is devastating that we're here tonight.

283
00:43:42.930 --> 00:43:56.359
Board Room: And had to listen to this presentation, from the applicant, who lackadaisically put together this information. The hard hats ordinance was put together to be intentional about developers in this city. Melgar Mechanical

284
00:43:56.470 --> 00:44:06.430
Board Room: A non-union sheet metal contractor is now being investigated by two DA's offices for trafficking 2,5 Honduran migrants. They helped to build out Shattuck. We heard from this developer.

285
00:44:06.590 --> 00:44:15.660
Board Room: multiple times that, oh, some union trades will be on this. Oh, non-union has healthcare. I can't keep up with the numbers here. I heard 60 million at one point.

286
00:44:15.870 --> 00:44:34.929
Board Room: This is about healthcare, and this is about apprenticeship opportunity. That's what the hard hats is about, and that's what they wanted to waive. In addition, this was about wages, but I want to make it very clear, this is about helping bring people up. And in a desperate

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time right now, we are in a desperate time in this country. This is devastating. Thank you. Thank you.

287
00:44:39.500 --> 00:44:44.179
Board Room: Hi, how's it going? Feel free to adjust the mic, too, so you don't have to… yeah, there you go.

288
00:44:45.140 --> 00:44:49.140
Board Room: My name's Thibor Lagerman, I'm a local 713 Carpenter member.

289
00:44:49.320 --> 00:44:51.630
Board Room: Since, I think 99.

290
00:44:51.850 --> 00:44:55.900
Board Room: Went through the apprenticeship program. I'm a Berkeley resident since that time.

291
00:44:56.160 --> 00:45:01.669
Board Room: I've worked on several projects in the city, including the Center Street Garage, the hotel.

292
00:45:01.800 --> 00:45:09.389
Board Room: And they're, another, apartment building, right on Addison. They're green, very ugly color.

293
00:45:09.520 --> 00:45:17.040
Board Room: We gotta work on our facades, by the way. But anyway, to make a long story short, Berkeley residents of all trades

294
00:45:17.440 --> 00:45:20.149
Board Room: Are gonna be affected by your decision today.

295
00:45:20.310 --> 00:45:23.939
Board Room: But you decide… will have consequence.

296
00:45:24.330 --> 00:45:31.330
Board Room: far-reaching consequence, and I need you guys to please consider healthcare.

297
00:45:31.650 --> 00:45:35.550
Board Room: They say, yeah, they might get it. How are they able to save all this money?

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298
00:45:35.890 --> 00:45:49.329
Board Room: if they also get healthcare. Everything is a dream in their world. They get apprenticeship training. Everyone else can just move it forward. You know, they can… alright, that's good enough. But I appreciate your time. Thank you. Thanks.

299
00:45:53.880 --> 00:46:01.960
Board Room: Yeah, feel free to move up. Come closer. Anthony Levice is also gonna concede some time to me. Can I speak? Sorry, whose seating time session?

300
00:46:02.450 --> 00:46:04.410
Board Room: Let's the time to set the lid.

301
00:46:05.120 --> 00:46:07.360
Board Room: Okay, thank you.

302
00:46:08.240 --> 00:46:26.979
Board Room: Alright, I've been introduced, I'm Stephanie Lind, I'm a Local 22 carpenter, I'm also a resident of Berkeley, I'm a homeowner, I have a kid in Longfellow, I have a kid at Berkeley Tech, and I was here in front of this council to speak in favor of the hard hat ordinance when it was passed, and I was so proud of this city at that moment.

303
00:46:27.150 --> 00:46:31.259
Board Room: With the work that I've done for the last 30 years as a carpenter.

304
00:46:31.580 --> 00:46:35.859
Board Room: Today, I'm… I'm shocked, these concessions.

305
00:46:35.990 --> 00:46:40.590
Board Room: And the talk of it… Having a cost savings?

306
00:46:40.820 --> 00:46:42.060
Board Room: Is… is…

307
00:46:42.580 --> 00:46:52.450
Board Room: outrageous. The cost is gonna be on the people of this city, someone like myself, in wages, healthcare, and… and…

308

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00:46:52.500 --> 00:47:11.049
Board Room: the ability to work in the city, I've… for 30 years, I've worked as a carpenter, and I've worked on a project once in Berkeley. And it's not because people don't bring projects to Berkeley, it's because the projects that are brought to Berkeley are not affordable. I'm working in San Francisco, I'm working in Walnut Creek, I'm working in Marin.

309
00:47:11.150 --> 00:47:25.279
Board Room: I worked on one project in Berkeley, and that was the year that I was the parent who could go to her kids' school events, who could go to the after-school things. Every other time, I'm commuting far away from Berkeley.

310
00:47:25.720 --> 00:47:33.960
Board Room: I'm here, and I'm a carpenter because I was given the opportunity through an apprenticeship program. I'm a single mom of two.

311
00:47:34.120 --> 00:47:40.420
Board Room: Because I can afford health insurance for my family. I can afford to live in Berkeley, that I love.

312
00:47:40.430 --> 00:47:50.739
Board Room: Because I've been given these opportunities through apprenticeship, through a living wage, through healthcare, and I think… I think we're asking the wrong questions here. We're looking at a spreadsheet, and we're weighing

313
00:47:50.740 --> 00:48:00.640
Board Room: Is it cheaper to have healthcare or not have healthcare? The cost is overall cradle to grave. It is not an affordable housing project, it is not a sustainable

314
00:48:00.840 --> 00:48:03.729
Board Room: product if it doesn't have a living wage.

315
00:48:04.430 --> 00:48:11.439
Board Room: The people who are gonna build this project need to be able to survive and live in this city, or we're giving work to people outside the city.

316
00:48:11.710 --> 00:48:12.790
Board Room: Thank you.

317
00:48:17.300 --> 00:48:23.420

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Board Room: Good evening, since we're so tight on time, I'm gonna have 3 individuals see time to me.

318
00:48:23.670 --> 00:48:27.100
Board Room: John Pitlock, and Mauricio Chavez.

319
00:48:28.290 --> 00:48:36.089
Board Room: Good evening, Mary Ishii, members of the Berkeley City Council. My name is Daniel Gregg, Senior Organizer at North Coast State's Carpenters Union Local 713.

320
00:48:36.290 --> 00:48:54.120
Board Room: We're here in opposition to a group of developers and their consultant who want to strip healthcare from hundreds of construction workers here in the city of Berkeley. They have gone so far as to threaten the city with a lawsuit if they do not acquiesce to their demand to strip those hundreds of workers of their mandated healthcare. The absurdity of this moment is immeasurable.

321
00:48:54.380 --> 00:48:55.930
Board Room: How did we arrive here?

322
00:48:56.360 --> 00:49:01.040
Board Room: I don't live in Berkeley, but I have represented workers in this city for over 10 years.

323
00:49:01.160 --> 00:49:10.150
Board Room: In those 10 years, Berkeley has seen a boom in construction. Developers from all over the world propose and build projects here. Even post-pandemic, when market rate housing

324
00:49:10.270 --> 00:49:16.689
Board Room: has virtually dried up all over the Bay Area. Developers still identify Berkeley as a city they can find financially feasible to build in.

325
00:49:17.050 --> 00:49:20.119
Board Room: That basically means that the rent in Berkeley is still extremely high.

326
00:49:20.630 --> 00:49:24.259
Board Room: When construction is booming, developers will cry, there's a labor shortage.

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327
00:49:24.560 --> 00:49:32.319
Board Room: That is a misrepresentation of the truth. The reality is that there is a shortage of individuals willing to work for low wages and little to no benefits.

328
00:49:32.440 --> 00:49:39.160
Board Room: The development community has a responsibility to create incentives that make the construction industry attractive as a career path.

329
00:49:39.510 --> 00:49:55.899
Board Room: Here in Berkeley, they have failed miserably at that responsibility. Hardhats is a response to that failure. Hardhats went into effect in January of 2024, a modest proposal that requires a commitment to healthcare and apprenticeship on large projects in Berkeley. It was aggressively opposed by Mark Rhodes.

330
00:49:56.130 --> 00:50:01.320
Board Room: And we saw a flurry of project applications come in before the law went into effect.

331
00:50:01.660 --> 00:50:14.119
Board Room: 2425 Durant is the first project to finally be subject to hard hats. On October 9th, Park Rhodes, on behalf of his client, asked the ZAB Board to grant concessions on healthcare and apprenticeship, among other things.

332
00:50:14.290 --> 00:50:19.440
Board Room: He told the board that they had previously granted these concessions on several projects, and even

333
00:50:19.590 --> 00:50:23.670
Board Room: Named a few. Another complete misrepresentation of the truth.

334
00:50:24.360 --> 00:50:28.849
Board Room: On October 30th, the second project to be subject to RDAS arrived before the ZAB Board.

335
00:50:29.130 --> 00:50:37.789
Board Room: who was under the impression that these concessions had previously been granted on several projects. Again, healthcare was stripped away from hundreds of construction workers with a concession.

336

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00:50:38.390 --> 00:50:45.099
Board Room: On November 13th, the third and fourth project to be subjected to hardhats was presented to ZAB Board.

337
00:50:45.260 --> 00:50:51.259
Board Room: In this instance, staff had to issue a retraction of the statements made by Mark Rhodes at the October 9th meeting.

338
00:50:51.590 --> 00:50:53.400
Board Room: But the damage was already done.

339
00:50:53.730 --> 00:51:00.230
Board Room: Now, precedence… Which did not previously exist, have been set based on false statements.

340
00:51:01.080 --> 00:51:11.679
Board Room: That is how we got here, and what I believe this is all about. Decisions made here in Berkeley will reverberate throughout the state as developers exploit this unintended loophole in the state density bonus law.

341
00:51:12.040 --> 00:51:20.199
Board Room: This is not about union versus non-union, or hard hats vs. PLA. 100% of the construction workers on these projects could be non-union.

342
00:51:20.400 --> 00:51:23.239
Board Room: And when Hard Hats applies, they will enjoy healthcare.

343
00:51:23.680 --> 00:51:28.160
Board Room: Construction is the second largest industry in the world, behind healthcare.

344
00:51:28.370 --> 00:51:31.699
Board Room: And one of the most dangerous, physically and mentally.

345
00:51:32.260 --> 00:51:45.380
Board Room: Mark Rhodes made a comment to me that several buildings in Berkeley, in fact, he said it again tonight, several buildings in Berkeley were built non-union and they're still standing. This comment completely misses the point and speaks to the mindset of these individuals.

346

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00:51:45.550 --> 00:51:50.670
Board Room: My question isn't whether the building is still standing, but are the workers who built it still standing?

347
00:51:51.090 --> 00:51:56.280
Board Room: We respectfully ask that the Council approve these projects without granting concessions on hard hats.

348
00:51:56.660 --> 00:51:58.420
Board Room: Thank you for your time and consideration.

349
00:51:59.480 --> 00:52:00.490
Board Room: Thank you.

350
00:52:09.060 --> 00:52:10.430
Board Room: Judy Gatewood.

351
00:52:10.560 --> 00:52:12.660
Board Room: I'm a retired carpenter.

352
00:52:12.800 --> 00:52:16.739
Board Room: I grew up in Berkeley, and I live… I'm a homeowner in Berkeley now.

353
00:52:16.960 --> 00:52:33.860
Board Room: I raised my daughter in Berkeley. I was in a union from the Carpenters Union since 1979. I always had healthcare for my daughter. I always had a good wage. I had pension… I had a pension. I'm living on my pension now, because I was a member of a union.

354
00:52:34.490 --> 00:52:40.199
Board Room: And, I bought my house because the carpenter saved money in an annuity fund for me.

355
00:52:40.530 --> 00:52:45.290
Board Room: And there's no excuse, there's no excuse for a town like Berkeley not to have

356
00:52:45.560 --> 00:52:53.870
Board Room: jobs that benefit their workers. I was really proud when we finally passed that hard hat ordinance, because I've had to watch the developers

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357
00:52:54.020 --> 00:53:13.030
Board Room: build these terrible buildings all over Berkeley, and I see the workers, and I talk to them, and these people are not getting prevailing wage, they're not getting healthcare a lot of the time, and there's no compliance. Berkeley doesn't do compliance. At least if these people were in a union, the union would make sure they had health coverage. Thank you.

358
00:53:19.030 --> 00:53:25.800
Board Room: Yes, good evening, Councilmembers. I'm Tim Frank, and I'm representing the Construction Trades Workforce Initiative.

359
00:53:25.910 --> 00:53:35.290
Board Room: And to save time tonight, I'm actually getting seated time from Ian Streets, Chris Palomo, and Ramon, amore.

360
00:53:36.980 --> 00:53:50.819
Board Room: So, thank you very much. I just wanted to note that, by way of introduction, the Construction Trades Workforce Initiative is a non-profit partner of the Building Trades, and we work on providing access to family-sustaining careers for

361
00:53:50.820 --> 00:53:58.349
Board Room: people from disadvantaged communities, from the justice-impacted, etc. That's our fundamental purpose, and we…

362
00:53:58.930 --> 00:54:16.040
Board Room: work on both support of programs that provide pre-apprenticeship training for these cohorts, including Rising Sun and the Nelson Mandela Center, which actually serve residents from Berkeley. And we work on policy issues, such as the current policy.

363
00:54:16.160 --> 00:54:24.110
Board Room: Now, I would note that the construction industry is a dual-wage industry. You know, it has a high-road sector, and then it has a low-road sector.

364
00:54:24.340 --> 00:54:38.079
Board Room: And the low-rud sector is defined by low wages and dangerous working conditions. And if you're wondering what that means in the Bay Area, the majority of construction work… Residential construction workers in the Bay Area make what

365
00:54:38.370 --> 00:54:43.349

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Board Room: the State Department of Housing and Community Development defines as a low wage.

366
00:54:43.620 --> 00:54:52.670
Board Room: Which means that they actually qualify for housing subsidies, such as the subsidies that we provide from the funds we get from U1, etc.

367
00:54:53.380 --> 00:55:00.869
Board Room: And the high wage industry is defined more by paying, a prevailing wage.

368
00:55:01.080 --> 00:55:12.560
Board Room: But the prevailing wage is really part of a package that includes prevailing wage, paid benefits, including paid healthcare, and adequate,

369
00:55:12.700 --> 00:55:30.759
Board Room: training to ensure that the workers are working in a safe environment. And without these things, all three of them, you don't have the quality of training and retention and the skilled workforce that we know is important to delivering both green building benefits, but also health and safety benefits.

370
00:55:31.220 --> 00:55:33.320
Board Room: So, I just wanna…

371
00:55:33.890 --> 00:55:43.090
Board Room: note that the Hardhats Ordinance and the provision in the Southside Plan are specific written proposals that are embedded in the Berkeley Code.

372
00:55:43.430 --> 00:56:02.620
Board Room: And that they are justified by very strong statistical evidence. And I will note that the statistical evidence is general, it has not come from the City of Berkeley, but this is same… this same thing can be said of the provisions in the Berkeley Seismic Plan. It's, it's electrical code, it's seismic code.

373
00:56:02.870 --> 00:56:06.880
Board Room: And none of these things are things that we would want them to be able to waive.

374
00:56:08.000 --> 00:56:18.249

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Board Room: So, finally, I just want to focus a little attention on the health and safety issue here. I mentioned that the construction industry is a dual-wage industry.

375
00:56:18.250 --> 00:56:28.129
Board Room: So, the health and safety impacts of that have been considered by the California State Department of Insurance since 1986, when it established a penalty

376
00:56:28.140 --> 00:56:32.400
Board Room: For, contractors that are, paying low wages.

377
00:56:32.470 --> 00:56:43.460
Board Room: For workers' comp insurance. Now, the thing about the, the specific adverse impact, what we're talking about is injuries on the job, and

378
00:56:43.580 --> 00:56:58.610
Board Room: What the evidence from the insurance industry provides you is the very clear, strong statistical basis for suggesting that workers who are paid a low wage, not given training.

379
00:56:58.610 --> 00:57:07.539
Board Room: And, working in an environment where their colleagues have a lot of turnover and you don't have a lot of experience on the job, that's dangerous.

380
00:57:07.900 --> 00:57:12.510
Board Room: Right? And so, this… so, for 40 years.

381
00:57:12.870 --> 00:57:22.769
Board Room: We have seen an annual reconciliation of those facts by the State Department of Insurance that have established a penalty for workers' comp rates

382
00:57:22.930 --> 00:57:33.209
Board Room: for, contractors who pay low wages, and a corresponding benefit for, lower, for… Thank you. Thanks for your comment. Thank you. Appreciate it.

383
00:57:40.390 --> 00:57:59.840
Board Room: Good evening, Council. My name is Joey Flagel-Michlove. I'm a Berkeley resident, a resident of District 8, and I'm here in my capacity as chair of the City of Berkeley Commission on Labor. The Commission on

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Labor discussed this issue and urges the Council to not grant concessions that allow developers out of the Hard Hats ordinance.

384
00:58:00.030 --> 00:58:19.870
Board Room: And, what we discussed was that this is called a density bonus. The intention is that if developers build affordable housing, they get more density. They get to build taller, they get to build more units. It is not a throw-your-workers-under-the-bus, bonus. It is a density bonus. And if, if this concession is granted, Berkeley will not have…

385
00:58:19.870 --> 00:58:29.210
Board Room: a hard hats ordinance, because every developer will ask for these concessions. So, we heard, the developer tonight.

386
00:58:29.270 --> 00:58:41.700
Board Room: threatened that no housing will be built in Berkeley if we maintain this ordinance. I urge the Council to fight for our ordinance and do whatever it takes to stand by the ordinance that we passed. Thank you. Thank you.

387
00:58:46.660 --> 00:58:49.569
Board Room: Good evening. Joel Toscano will be seating this time.

388
00:58:52.090 --> 00:59:07.029
Board Room: Good evening, Mayor Ishii and Councilmembers. My name is Jesse Perales, the business representative for Local 713, and I oversee the jobs in Berkeley, and see firsthand the impact that low-cost, low-road contractors have in this area. I have seen how a contractor

389
00:59:07.030 --> 00:59:22.990
Board Room: where the job site was shut down due to safety concerns. It was actually shut down by the City of Berkeley Fire Department about 9 months ago, and it was, because they did not have a proper stairwell in the building during construction of a 5-story housing on College Avenue. There was another accident years back where a worker

390
00:59:22.990 --> 00:59:31.919
Board Room: Hung his nail gun on the hook near a stairwell, and went to get more material. It eventually fell off the fifth floor onto another worker's head on the second floor, eventually killing him.

391
00:59:31.920 --> 00:59:43.329
Board Room: Cal OSHA ruled the death happened because none of the employers on site ensured that there were effective safeguards in place

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for those workers below an elevated work area. These are just a few examples where the conditions were unsafe.

392
00:59:43.480 --> 01:00:02.650
Board Room: Local 713 actually has an MOU with Berkeley Unified School District to recruit future construction workers. The carpenters are invested in growing the community, building housing, and investing in the construction workforce. Granting concessions on labor standards effectively cancels this MOU and the long-standing relationship we have in this community.

393
01:00:02.990 --> 01:00:06.439
Board Room: These proposed projects, if they have proper labor protections.

394
01:00:06.740 --> 01:00:19.280
Board Room: can be beneficial to the Berkeley community by building housing and creating job opportunities. I want to see Berkeley grow. I want the city to build more housing, and I want to see quality jobs to recruit and retain construction workers.

395
01:00:19.540 --> 01:00:35.880
Board Room: The concessions that the applicant is asking for takes us several steps back from hardhats that the City of Berkeley passed years ago. We have to make sure these projects are built right, and we have to make sure they don't go out of our way to reverse city policy to make a profit on the backs of workers you resolved to protect years ago.

396
01:00:36.170 --> 01:00:54.380
Board Room: We want to see this project built. We understand the need and support division, but not with the concession the applicant is requesting. On behalf of Carpenters Local 713, we ask the City Council to uphold the appeal of these projects because they deny all workers healthcare, apprenticeship investments, and fair wages. Thank you. Thank you.

397
01:00:58.000 --> 01:01:00.490
Board Room: Perfect timing, too. Very good.

398
01:01:03.020 --> 01:01:08.520
Board Room: Good evening, council members. My name is Eric De La Cruz. I'm a first period apprentice out of Local 713.

399
01:01:08.660 --> 01:01:21.439

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Board Room: Even though I haven't started working in the field yet, joining the Carpenters Union has already changed my life. It gave me a real path forward, a chance to build a stable career, earn fair wages, and have access to healthcare and benefits that protect me and my family.

400
01:01:21.550 --> 01:01:31.139
Board Room: For me, being in the union isn't just about a job, it's about opportunity. It's about knowing that if I work hard, I can support myself, afford healthcare, and provide for my family.

401
01:01:31.300 --> 01:01:39.249
Board Room: When companies try to undercut workers by lowering wages or reducing benefits, they're not just cutting costs, they're cutting people's futures.

402
01:01:39.360 --> 01:01:42.549
Board Room: They're making it harder for apprentices like me to stay in the trade.

403
01:01:42.700 --> 01:01:53.770
Board Room: build a life here. I joined the union because I believe in fair pay for skilled work, I believe workers deserve healthcare, and I believe our city should support projects that lift workers up and not push standards down.

404
01:01:54.150 --> 01:02:03.119
Board Room: We urge the Council to remember what we stand for in Berkeley, to uphold the hard hats ordinance, uphold this appeal, and promote housing that isn't built by exploiting workers.

405
01:02:03.270 --> 01:02:06.539
Board Room: But… supporting workers, thank you. Thank you.

406
01:02:14.160 --> 01:02:18.620
Board Room: Good evening, Madam Mayor and Council Members. My name is Alia Solage.

407
01:02:19.250 --> 01:02:24.900
Board Room: I lived in Berkeley, I'm from the locals, 22 or 36 in Oakland.

408
01:02:25.080 --> 01:02:31.390
Board Room: But I lived in Berkeley since 1985. I was able to buy my house thanks to the union.

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409
01:02:31.670 --> 01:02:33.370
Board Room: Raised my two kids.

410
01:02:35.300 --> 01:02:41.750
Board Room: They went to Longfellow. They graduated from, berkeley, Berkeley High.

411
01:02:42.590 --> 01:02:43.410
Board Room: So…

412
01:02:44.150 --> 01:02:54.669
Board Room: The hard hats ordinance provided us… provided our city with a foundation. If we are building housings, we must also support working families in our community.

413
01:02:55.860 --> 01:03:03.789
Board Room: Granting these conventions opened the door for developers to continue to chip away foundation project by project.

414
01:03:04.430 --> 01:03:13.509
Board Room: Once you decide that our city labor protections are negotiable, you are sending a message to developers that our labor standards are optional.

415
01:03:14.640 --> 01:03:16.270
Board Room: Correcting these concessions.

416
01:03:17.320 --> 01:03:19.830
Board Room: Thank you. I strongly urge you today.

417
01:03:26.490 --> 01:03:36.170
Board Room: Good evening, Council. My name is Winn New Barth. I'm a UC Berkeley student. I want to give a sociological perspective on this. I,

418
01:03:36.290 --> 01:03:46.540
Board Room: I've seen these people, these workers outside my apartment the last, like, few months, I think, and I think that, you know, if you're looking around the country, you know.

419
01:03:46.540 --> 01:04:03.879

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Board Room: I think that you need to set a good example. I think that unions are starting to make a comeback. The SFUSD just went on strike in the… for the first time in 50 years, Oakland District is going on strike, and the nurse is in Oakland as well, and I think that in order to provide a good example, you need to give your…

420
01:04:03.880 --> 01:04:16.949
Board Room: You need to give your contract workers fair wages, healthcare, and you need to be hiring unions and not hiring these other contractors that have low standards for their companies, especially at a time like this where

421
01:04:16.950 --> 01:04:25.179
Board Room: A lot of, where ICE is taking so many people, we need to be setting a good example for our immigrant communities, which a lot of these people are.

422
01:04:25.510 --> 01:04:27.159
Board Room: So, thank you.

423
01:04:28.240 --> 01:04:29.450
Board Room: Thank you.

424
01:04:31.470 --> 01:04:49.709
Board Room: Good evening, everybody, AJ Sire, Shemetal Workers, Local 104. I'm kind of confused as to why the applicant is consistently on this whole union versus non, and using union bids to do this stuff. This isn't about union versus non. The Hardhat's ordinance is healthcare and state-approved apprenticeship training to actually put people through a career that supports them. It's not union versus non.

425
01:04:49.790 --> 01:04:59.209
Board Room: So, if you're in a union, you're already gonna have these protections. The reason why we fought for it, and the reason why we're all here tonight to fight for the workers, is to fight for the workers. We're not here for profit over people.

426
01:04:59.260 --> 01:05:17.549
Board Room: So, what I want to make sure is understood is, you know, on the night that Hard Hats came to fruition, and everybody was here, and it was a great celebration and huge picture, Councilmember Bartlett, one of the things that you said during that speech was that workers everywhere need to know that regardless of who's against them, one city has their back. The developers are here tonight to take that away from you without proof.

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427
01:05:17.550 --> 01:05:20.990
Board Room: Councilmember Humbert, whenever it was your turn to speak, and it was that time for voting.

428
01:05:21.080 --> 01:05:24.929
Board Room: Your response on your vote wasn't just a yes or an I. You said, heck yes.

429
01:05:25.130 --> 01:05:28.470
Board Room: So now we're supposed to be going against all of this with no proof.

430
01:05:28.630 --> 01:05:35.900
Board Room: The justification in their dialogue was 3 sentences. There was no documentation for any of this. Thank you, I appreciate that. Thanks, Jay.

431
01:05:40.700 --> 01:05:53.959
Board Room: Hello, council members. My name is Scott Littlehale. I'll be joining you again shortly. Councillors have asked questions about evidence as to what the costs of hard hats are, and what the benefits are.

432
01:05:54.560 --> 01:06:03.529
Board Room: Hardhats, through its training provisions, which promotes safety, and its healthcare provisions, which promotes health of the worker and possibly a dependent.

433
01:06:04.300 --> 01:06:09.249
Board Room: Have a direct nexus to public safety and health, which is the exemption under state law.

434
01:06:09.380 --> 01:06:21.860
Board Room: for regulatory concession. And as best as I can tell, though, neither the applicant nor the city staff have attempted to do any cost-benefit analysis of the public health and safety costs and benefits.

435
01:06:22.780 --> 01:06:26.719
Board Room: Conceding health standards is not the same.

436
01:06:26.910 --> 01:06:29.740
Board Room: As granting a height limit waiver.

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437
01:06:30.670 --> 01:06:35.490
Board Room: Workers' welfare is not the same as a zucchini patch.

438
01:06:36.240 --> 01:06:39.209
Board Room: That's all I have to say, and I'll see you shortly.

439
01:06:39.840 --> 01:06:40.770
Board Room: Thank you.

440
01:06:46.150 --> 01:06:46.830
Board Room: Oh.

441
01:06:47.140 --> 01:06:49.929
Board Room: Is there any other in-person public comment?

442
01:06:52.070 --> 01:06:52.860
Board Room: Okay.

443
01:06:53.530 --> 01:07:02.369
Board Room: Is there anyone online who has public comment on Item 2, Zoning Adjustments Board Appeal 2425 Durant Avenue?

444
01:07:05.730 --> 01:07:10.409
Board Room: There are, 3 hands raised. The first speaker is David Scheer.

445
01:07:14.340 --> 01:07:26.290
David Shere: Okay, two points that I want to make tonight. When Council passed Hard Hats back in 2023, there were some additional referrals. There was, including it in the feasibility study, we did that.

446
01:07:26.300 --> 01:07:40.280
David Shere: There were subsequent adjustments to impact fees to offset the costs based on the feasibility study. We didn't do that. There is… and there was further upzoning in downtown. We… we haven't come back to that.

447
01:07:40.300 --> 01:07:45.650
David Shere: I really hope that we are able to come back to some of these things. We hear a lot about how important

448
01:07:45.720 --> 01:07:54.179

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David Shere: this… how important this ordinance is. Obviously, it… it makes things more expensive, and we… if we want this to work.

449
01:07:54.500 --> 01:08:05.490
David Shere: it's on us to make it work. That's… that's thing one. I hope we come back to this. Second, this is a novel use of the law. Very easy to imagine that whatever happens tonight, we're going to court.

450
01:08:06.030 --> 01:08:16.680
David Shere: That is expensive, and I encourage you to vote for whatever, minimizes our litigation costs and reduces the likelihood that we're paying attorney's fees. Thank you.

451
01:08:16.680 --> 01:08:17.790
Board Room: Thanks, David.

452
01:08:19.310 --> 01:08:22.649
Board Room: Okay, next is Bonnie Zhu.

453
01:08:28.359 --> 01:08:30.619
Bonnie Zhu: Can I share the screen?

454
01:08:31.970 --> 01:08:33.020
Board Room: known.

455
01:08:33.020 --> 01:08:33.810
Bonnie Zhu: Can you hear me?

456
01:08:33.960 --> 01:08:36.299
Board Room: Sorry, we don't do that during public comment.

457
01:08:37.540 --> 01:08:56.970
Bonnie Zhu: Okay, I… I just want to bring out the… the applicant has… applicant has a history of willful non-compliance with safety laws, and unfit to manage a project of this scale. I'm a resident at this, property, and they, violate the

458
01:08:57.080 --> 01:09:03.250
Bonnie Zhu: law without the property manager on site for…

459
01:09:03.779 --> 01:09:18.570

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Bonnie Zhu: More than 4 years, creating a public safety vacuum with several life-threatening incidents and involvement burdened the fire department, and they also didn't ignore the mandatory annual rental safety checks

460
01:09:18.710 --> 01:09:23.920
Bonnie Zhu: And failing to provide basic life safety equipment.

461
01:09:24.390 --> 01:09:35.430
Bonnie Zhu: and many other violations. Also, the applicant also legally intimidates and threat when red tenants cite the

462
01:09:35.880 --> 01:09:39.440
Bonnie Zhu: California Civic Code Regarding Life Safety Hazard.

463
01:09:39.600 --> 01:09:41.280
Bonnie Zhu: So, all in all.

464
01:09:46.459 --> 01:09:48.749
Board Room: Next speaker is Kelly Hammergren.

465
01:09:58.039 --> 01:10:01.279
Board Room: Kelly Hammergren, should… you're unmuted. You should be able to speak.

466
01:10:01.370 --> 01:10:02.360
kelly hammargren: Okay.

467
01:10:02.770 --> 01:10:20.179
kelly hammargren: So we have 169 units. Berkeley Municipal Code 23.324.030, the in-lieu fee, most easily found through a search affordable housing requirements for developers.

468
01:10:20.260 --> 01:10:25.419
kelly hammargren: The in-lieu fee is calculated as 10% very low-income units.

469
01:10:25.640 --> 01:10:33.609
kelly hammargren: 10% low-income units. When this was passed, it was for the total building. We are getting 7

470
01:10:33.820 --> 01:10:38.290

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kelly hammargren: very low-income units, not 17. We are getting 6.

471
01:10:38.450 --> 01:10:41.619
kelly hammargren: Low-income units, not 17.

472
01:10:41.920 --> 01:10:50.809
kelly hammargren: We have been told no money will be paid into the Housing Trust Fund when we are short 10 very low, short 11 low income.

473
01:10:50.990 --> 01:11:04.290
kelly hammargren: OSHA lists construction as the fourth most dangerous job in the U.S. after logging, roofers, fishing, and hunting. What we don't know is what the return on investment is expected for this project.

474
01:11:04.290 --> 01:11:05.630
Board Room: Thank you, Kelly.

475
01:11:07.240 --> 01:11:12.630
Board Room: Okay. That's, final speaker.

476
01:11:13.320 --> 01:11:16.180
Board Room: Thank you all, thank you very much for your public comments.

477
01:11:16.340 --> 01:11:21.069
Board Room: In… excuse me, is there a motion to close the public hearing?

478
01:11:22.050 --> 01:11:23.999
Board Room: So moved. Seconded.

479
01:11:26.470 --> 01:11:29.260
Board Room: Is there any opposition to closing a public hearing?

480
01:11:29.530 --> 01:11:31.939
Board Room: If not, we'll be recorded as I.

481
01:11:32.490 --> 01:11:47.069
Board Room: Unless we need to take the roll on it. Okay, then we will all be recorded as I for that. And the motion… and the motion to close the public hearing is passed. Yes. Okay, so, moving on to council deliberations, I believe I saw…

482

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01:11:47.580 --> 01:11:54.709
Board Room: You wanna wait? Okay. I just punched the button in. Sure. Alright, are there any council comments?

483
01:11:59.410 --> 01:12:01.540
Board Room: Okay, Councilmember Blackaby.

484
01:12:02.320 --> 01:12:03.540
Board Room: Thanks, Madam Mayor.

485
01:12:03.890 --> 01:12:12.410
Board Room: I want to thank everybody who's been here tonight, staff, members of our labor community, the developers who are here.

486
01:12:12.640 --> 01:12:19.210
Board Room: As other people have said, I mean, this is a really hard issue. It's a hard issue for me, I think it's a hard issue for all of us.

487
01:12:19.410 --> 01:12:29.799
Board Room: We all know, absolutely 100% without any question, that we need housing projects to move forward in this city, in this state.

488
01:12:29.940 --> 01:12:36.979
Board Room: We're in a housing crisis. We don't… we have not kept up with supply over the past decades. We need more housing.

489
01:12:37.610 --> 01:12:45.559
Board Room: At the same time, we want and deserve to make sure that people working on these projects are paid fairly.

490
01:12:45.850 --> 01:12:53.839
Board Room: They're well-trained, they get healthcare, and they can afford to live and safely work here in Berkeley. That is also a priority for us.

491
01:12:54.860 --> 01:13:02.609
Board Room: My read of the state density bonus law is that the applicant is entitled to these concessions by the letter of the law.

492
01:13:02.770 --> 01:13:11.089
Board Room: And denying this concession would put us, as a city, at legal risk at a time where we really can't afford to be put at that risk with the cost that we'd be exposed to.

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493
01:13:11.320 --> 01:13:14.530
Board Room: But, we also need to figure out how to do better.

494
01:13:14.930 --> 01:13:19.570
Board Room: Ultimately, this issue needs to be taken up and resolved at the state level.

495
01:13:19.980 --> 01:13:28.320
Board Room: Our overall goal should be to find the common ground that's required to provide workers with fair pay, healthcare, and training.

496
01:13:28.470 --> 01:13:33.910
Board Room: But that still, the market can still clear such that housing projects can move forward.

497
01:13:34.300 --> 01:13:36.759
Board Room: We need to have an open, robust.

498
01:13:36.990 --> 01:13:40.920
Board Room: Public discussion about that, and figure out how to make that happen.

499
01:13:41.320 --> 01:13:49.009
Board Room: It certainly does not reflect well on us as a state or as a community if we can't fairly pay and train the workers we need.

500
01:13:49.160 --> 01:13:50.579
Board Room: To build our housing.

501
01:13:50.710 --> 01:13:52.509
Board Room: So I will be,

502
01:13:53.010 --> 01:14:02.779
Board Room: I will be supporting the motion to deny the appeal reluctantly and approve the use permit, but I know we can do better, and I think we all deserve to do better. Thank you.

503
01:14:03.240 --> 01:14:06.380
Board Room: Thank you, Councilmember. Councilmember Taplin.

504

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01:14:07.450 --> 01:14:12.869
Board Room: Thank you very much, Madam Mayor, and to staff, and everyone who spoke tonight.

505
01:14:14.460 --> 01:14:17.540
Board Room: To be honest, this really doesn't sit right with me.

506
01:14:18.090 --> 01:14:22.470
Board Room: What is the point of there being 5 allotted meetings if not to achieve resolution between parties?

507
01:14:23.070 --> 01:14:35.900
Board Room: We have representatives of the East Bay's unionized workforce vying to create pathways to the middle class through gainful employment at safe and hazard-free job sites pitted against the deep pockets of well-resourced private enterprise.

508
01:14:36.070 --> 01:14:53.219
Board Room: The message this sends to the community is that state law subserviates the health, safety, and financial security of the families and workers providing physical labor and applying skilled craft to build the housing we so value, to the economic interests of private developers and their lenders.

509
01:14:54.260 --> 01:14:56.739
Board Room: The path before us is unclear this evening.

510
01:14:57.070 --> 01:15:00.750
Board Room: To ensure compliance with our local… our local labor standards.

511
01:15:03.930 --> 01:15:10.880
Board Room: If I could guarantee victory, I would gladly approve this project without the concessions, or remand back to Zeb.

512
01:15:11.020 --> 01:15:18.390
Board Room: To that end, I welcome and implore our state legislators to act in order to prevent exploitation of the concessions loophole.

513
01:15:18.540 --> 01:15:19.720
Board Room: In closing.

514
01:15:20.120 --> 01:15:27.149

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Board Room: This is a pro-housing council. Each of us in our districts and in unison on this dais has championed housing.

515
01:15:27.270 --> 01:15:32.730
Board Room: But none of us would be here if we failed to build bridges and bring the community along with us.

516
01:15:33.590 --> 01:15:42.200
Board Room: I take serious issue with this idea that you don't have to reach across the aisle to consider critical stakeholders because you can just strong-arm this council or the city.

517
01:15:42.510 --> 01:15:50.419
Board Room: Organized labor is not the enemy of housing, and any argument that throws workers under the bus will never gain traction with me. Thank you.

518
01:15:54.320 --> 01:15:56.700
Board Room: Thank you, Councilmember Humbert.

519
01:15:57.640 --> 01:15:59.559
Board Room: Thank you, Madam Mayor.

520
01:16:00.140 --> 01:16:05.260
Board Room: And, I have fairly lengthy comments, but,

521
01:16:05.370 --> 01:16:19.410
Board Room: I would ask some, you know, a little bit of leave to extend past the 5 minutes, because my comments on the second item will be much shorter. Yes, and you can have a minute of my time as well. Thank you.

522
01:16:19.720 --> 01:16:29.979
Board Room: Since these two appeals fundamentally relate to the same issue, that of labor standards in the Southside Plan, I'm gonna focus my comments here and refer back to them.

523
01:16:30.520 --> 01:16:40.300
Board Room: For the remaining one item. As such, I hope… well, I've already been granted a little bit of time. I truly wrestled with these applications. I spent a lot of time with them.

524
01:16:40.410 --> 01:16:50.249

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Board Room: The subsequent appeals and the difficult questions they pose about labor standards adopted by the city under the hard hats ordinance and the Southside Plan. And yes, I did say, heck yes.

525
01:16:50.440 --> 01:16:54.290
Board Room: Although my position on these issues ultimately came down

526
01:16:54.520 --> 01:17:10.109
Board Room: comes down to the legal questions, I want to acknowledge the incredibly thorny policy questions these projects and their appeals raise. Candidly, I hate that we're currently in a position where our desperate need for more homes is in conflict with the requirements

527
01:17:10.110 --> 01:17:21.880
Board Room: that we've established around healthcare and the apprenticeship for construction workers. It speaks to the urgent need for universal healthcare and greater state and federal support for vocational education and training.

528
01:17:21.950 --> 01:17:32.969
Board Room: Some people might argue that this tension is simply the result of greed from one group or the other, but I've got to push back on that. Construction workers are not greedy to want good healthcare.

529
01:17:33.150 --> 01:17:49.929
Board Room: But we can see from the stalled housing projects around the city that our current regulatory requirements and construction costs are rendering projects infeasible in our current climate. It's also worth noting that the U.S. has overall construction costs that tend to far outstrip those in comparable developed countries.

530
01:17:49.930 --> 01:17:57.659
Board Room: To the extent greed is causing these problems, I'd argue it's coming from far above the level of these projects and the City of Berkeley.

531
01:17:57.790 --> 01:18:09.380
Board Room: But beyond these questions being challenging from its policy, and even from a philosophical, or maybe sociological standpoint, we were precluded from looking at these appeals in those lights.

532
01:18:09.430 --> 01:18:28.579
Board Room: Whatever we might feel is right policy-wise, we're obligated to follow the law to the best of our ability to understand that law. Additionally, given the city's incredibly dire budget situation, I'm

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further compelled to go with the legally defensible position to minimize the city's likelihood of legal and financial

533
01:18:28.580 --> 01:18:29.650
Board Room: liability.

534
01:18:29.700 --> 01:18:36.019
Board Room: We've seen with past projects that the city has spent or outright lost millions of dollars when it fought

535
01:18:36.190 --> 01:18:49.039
Board Room: ultimately lost legal battles over projects where our arguments rested on very shaky legal ground. I therefore must make a decision based on my best judgment, as well as the advice of our planning staff.

536
01:18:49.040 --> 01:19:04.179
Board Room: and our city attorney. On this basis, I'm compelled to conclude the city is obligated to deny this appeal, affirm the decision of the Zoning Adjustments Board, and approve the 2298 Durant project. That's the wrong number, I think, but…

537
01:19:04.580 --> 01:19:09.510
Board Room: Let's see, 20… 24-25 grant project as proposed.

538
01:19:09.830 --> 01:19:16.349
Board Room: On the question of whether local labor requirements can be voided as part of concession, I believe the letter of the law supports this.

539
01:19:16.660 --> 01:19:29.289
Board Room: There are clear provisions in state law under the section 65915 cited, spelling out that while waivers might pertain to physical development standards, concessions are not limited to these.

540
01:19:29.400 --> 01:19:35.050
Board Room: Hard hats would fall under the more permissive definition of a regulatory concession.

541
01:19:35.220 --> 01:19:49.790
Board Room: This permissiveness is reinforced by the statutory provisions specifying that there should be a liberal construction in favor of more housing, as well as the state's legislative findings that California is in desperate need of more housing.

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542
01:19:50.460 --> 01:20:01.820
Board Room: This interpretation is further reinforced by at least one technical assistance letter from HCD, in the Blossom Hill project in San Jose. HCD had this to say.

543
01:20:02.130 --> 01:20:08.019
Board Room: The definition clearly indicates that requirements beyond development standards are eligible as concessions.

544
01:20:08.020 --> 01:20:23.100
Board Room: In subparagraph 3, the statute clearly identifies regulatory requirements that are proposed by the applicant and result in identifiable and actual cost reductions as eligible incentives or concessions under the state density bonus law.

545
01:20:23.820 --> 01:20:29.250
Board Room: Given all this, I'm forced to conclude that hard hats requirements can be waived as part of a concession.

546
01:20:29.740 --> 01:20:46.500
Board Room: Now, my understanding is that Senator Aragin, our former mayor, and he was the author of Hard Hats, has even said he believes a state legislative fix may be necessary. This lends strong credence to the idea that the current law allows for this concession to go forward

547
01:20:47.020 --> 01:20:57.930
Board Room: if it's a state law loophole, and I heard the mention of a loophole, then the state has to fill that loophole, and frankly, I hope the state does, because we can't.

548
01:20:58.220 --> 01:21:03.249
Board Room: What is far less clear… can I go on?

549
01:21:05.420 --> 01:21:16.940
Board Room: What is far less clear is whether the city has any power to deem the existing cost savings documentation so insufficient as to actually deny the project. Here, I still believe the answer is no.

550
01:21:17.050 --> 01:21:19.140
Board Room: The fact that we have organized

551
01:21:19.140 --> 01:21:39.859

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Board Room: our brothers and sisters from organized labor here arguing for hard hats requirements is just frankly a clear indication that they carry value for both parties and cost to the applicant. I think it's extremely unlikely that the city would find sufficient fault with the cost documentation so as to contravene this simple common sense conclusion.

552
01:21:42.200 --> 01:22:00.359
Board Room: Given all of what I've outlined, I'm not willing to put the city on shaky legal ground and create additional potential costs and staff time and legal defense by requesting documentation that would likely confirm what we already know and which makes sense on a common sense basis.

553
01:22:01.630 --> 01:22:08.460
Board Room: I think the strongest argument in the appeal is probably the idea that the healthcare provision of cities' hardhats

554
01:22:08.590 --> 01:22:15.009
Board Room: requirement is necessary… I can give you a minute. Okay. It's necessary to protect public health and safety.

555
01:22:15.200 --> 01:22:18.839
Board Room: However, we have to look at this through the lens of the statute.

556
01:22:19.160 --> 01:22:33.429
Board Room: Where the state has adopted a narrow definition of public health and safety, which they have further clarified should only infrequently apply. And once again, we have to keep in mind the overall pro-housing context and findings of the legislation.

557
01:22:34.360 --> 01:22:49.560
Board Room: I'm gonna leave aside the question of quantifiable, because the impacts, theoretically, are quantifiable, but whether they are significant is more difficult, but I don't think the city could meet the burden of proof necessary to show that the impacts from these specific projects are significant.

558
01:22:51.860 --> 01:23:05.950
Board Room: I'm concerned that the tenuousness of these connections should not only put the city in legal jeopardy, but explode state housing laws and wages, which would allow other cities to adopt anti-housing requirements in bad faith, and we've seen a lot of that all over the state.

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559
01:23:06.190 --> 01:23:13.629
Board Room: To wrap this up, I want to again express my strong support for construction workers, indeed all workers in residence.

560
01:23:13.630 --> 01:23:27.189
Board Room: to have full healthcare coverage, but I have to put these sentiments aside in evaluating whether the city can enforce local requirements around healthcare, apprenticeship, and compensation in the context of state density bonus law.

561
01:23:27.190 --> 01:23:39.669
Board Room: which grants broad incentives and concessions, and only narrow exceptions to granting them. As such, I'm compelled to reject the appeal, affirm the ZAB's decision, and grant the necessary permits for this project.

562
01:23:39.740 --> 01:23:56.390
Board Room: Thank you. Thank you, and for transparency, Councilmember Humber Humbert had asked me previously if he could have, sort of, time from his… from the second item for this one, so just… so folks understand. So, just so you know, the order will be Councilmember Bartlett, then Trey Gov, then Kesarwani.

563
01:24:01.390 --> 01:24:02.710
Board Room: Thank you, Madam Mayor.

564
01:24:02.940 --> 01:24:04.230
Board Room: Thank you.

565
01:24:04.370 --> 01:24:12.760
Board Room: And, well, it's, didn't expect to be here. We passed this, this groundbreaking rule last year. It's interesting, though, because

566
01:24:13.750 --> 01:24:21.189
Board Room: We're, we're charting the sort of larger trends at play in the country and here. You know, healthcare is in crisis, we know this.

567
01:24:21.440 --> 01:24:24.559
Board Room: A trillion dollars are taken out of the healthcare budget.

568
01:24:24.760 --> 01:24:30.479
Board Room: to give tax breaks to billionaires, and California's about to lose 17, 18 hospitals.

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569
01:24:31.190 --> 01:24:39.420
Board Room: I think some tens of millions of people losing healthcare, 5 million children losing… nutritional assistance.

570
01:24:39.520 --> 01:24:44.099
Board Room: So the downward pressure is on the Berkeley worker.

571
01:24:44.280 --> 01:24:46.270
Board Room: Their health, and their wages.

572
01:24:46.440 --> 01:24:47.690
Board Room: and well-being.

573
01:24:47.790 --> 01:24:53.320
Board Room: We know that the jobs industry is under assault from efficiency and technology.

574
01:24:53.430 --> 01:24:54.740
Board Room: So…

575
01:24:55.420 --> 01:25:01.200
Board Room: You know, the things that we fought for in this item, still matter, and they still value, and they're so important.

576
01:25:01.430 --> 01:25:06.340
Board Room: There's another larger issue, too, in terms of, at what point does the…

577
01:25:06.540 --> 01:25:11.040
Board Room: To state law, effectively nullify our locally adopted public health standards.

578
01:25:11.200 --> 01:25:13.950
Board Room: You know, what boundaries are out there?

579
01:25:14.070 --> 01:25:20.379
Board Room: For instance, if we can… if local labor standards can be waived, then what about environmental mitigation? What about…

580
01:25:20.550 --> 01:25:22.250

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Board Room: Safety requirements.

581
01:25:22.490 --> 01:25:27.989
Board Room: And so forth and so forth. It's a slippery slope that I think we need to grapple with very carefully.

582
01:25:28.090 --> 01:25:34.090
Board Room: And you know, regarding the, the, the quantifiable

583
01:25:34.470 --> 01:25:42.810
Board Room: the quantifiable costs that were cited here, and the impacts, so I don't know whether the city has fully evaluated

584
01:25:43.170 --> 01:25:53.700
Board Room: whether removing healthcare standards from workers here in the city will produce, measurable impacts to worker health during the life of this project. I know from one of the… at least one of the speakers here, it sounded like it could have.

585
01:25:54.130 --> 01:25:57.849
Board Room: And if the answer is no, is that because the impacts do not exist?

586
01:25:58.130 --> 01:26:01.169
Board Room: Or is it because we've not yet built a sufficient record?

587
01:26:02.160 --> 01:26:17.099
Board Room: So, you know, in short, I support housing from day one, and I support workers from day one as well, and I support hardhats. And I just don't feel comfortable granting concessions of this magnitude, and this potential magnitude, without a fully developed factual record.

588
01:26:17.220 --> 01:26:21.170
Board Room: I'd like to see some, some more findings here. Thank you.

589
01:26:24.140 --> 01:26:25.299
Board Room: Thank you.

590
01:26:25.410 --> 01:26:26.790
Board Room: Councilmember Treka.

591
01:26:28.350 --> 01:26:30.050

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Board Room: Thank you, Madam Mayor.

592
01:26:30.790 --> 01:26:32.679
Board Room: Thank you to staff.

593
01:26:32.790 --> 01:26:37.049
Board Room: The applicant, the appellant, and all members of the public here tonight.

594
01:26:39.140 --> 01:26:41.600
Board Room: on day one, F.

595
01:26:41.820 --> 01:26:47.779
Board Room: my first career as an engineer. Someone came to my office and told me.

596
01:26:48.210 --> 01:26:52.459
Board Room: If I really wanted to get an understanding.

597
01:26:52.750 --> 01:26:57.779
Board Room: Of what actually is going on, how things are built.

598
01:26:58.480 --> 01:27:00.530
Board Room: Go talk to the construction crafts.

599
01:27:01.450 --> 01:27:05.630
Board Room: And I did. And I am very glad I did that.

600
01:27:07.750 --> 01:27:11.649
Board Room: contrary to what I heard,

601
01:27:12.210 --> 01:27:17.799
Board Room: Someone in the public say, around a special interest group.

602
01:27:18.540 --> 01:27:20.180
Board Room: These are men and women.

603
01:27:20.410 --> 01:27:25.149
Board Room: that build the housing of Berkeley and beyond.

604

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01:27:26.030 --> 01:27:29.099
Board Room: And should be treated with the same respect.

605
01:27:29.400 --> 01:27:31.310
Board Room: That we should treat all people.

606
01:27:32.150 --> 01:27:36.610
Board Room: It is atrocious that in one of the most rich countries in the world.

607
01:27:36.810 --> 01:27:41.020
Board Room: In one of the most wealthy areas in our country.

608
01:27:42.020 --> 01:27:44.670
Board Room: We cannot… make projects.

609
01:27:45.270 --> 01:27:47.150
Board Room: supposedly pencil.

610
01:27:47.380 --> 01:27:50.500
Board Room: that pay people Fair wages.

611
01:27:50.620 --> 01:27:52.370
Board Room: For their qualified labor.

612
01:27:52.920 --> 01:27:58.119
Board Room: We would not hire a sergeant who did not receive a certificate of completion of their craft.

613
01:28:00.140 --> 01:28:01.430
Board Room: How can it be?

614
01:28:01.980 --> 01:28:04.640
Board Room: That we would be okay with building housing?

615
01:28:04.820 --> 01:28:06.599
Board Room: Where people lived for years.

616
01:28:06.740 --> 01:28:10.909
Board Room: That must withstand earthquakes and other natural disasters.

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617
01:28:11.530 --> 01:28:18.100
Board Room: Without giving them the training that they deserve, the healthcare… That all of us deserve.

618
01:28:18.360 --> 01:28:23.240
Board Room: And a wage that might allow them to afford the housing that they're building.

619
01:28:24.600 --> 01:28:33.740
Board Room: It is heart-wrenching to me that we have to choose over and over again between having much more needed housing and paying people that they're worth.

620
01:28:34.620 --> 01:28:36.759
Board Room: Or other community benefits.

621
01:28:38.430 --> 01:28:40.240
Board Room: I am pro-housing.

622
01:28:41.400 --> 01:28:45.420
Board Room: in my… Combined 14 years.

623
01:28:45.610 --> 01:28:53.129
Board Room: on the ZAB and the Council, I am proud to have approved over 10,000 units of housing.

624
01:28:54.740 --> 01:28:58.560
Board Room: And… A lot of it is in the downtown.

625
01:28:59.210 --> 01:29:02.019
Board Room: A district that I am honored to serve.

626
01:29:03.590 --> 01:29:06.259
Board Room: I am all too painfully aware.

627
01:29:06.730 --> 01:29:08.689
Board Room: Of the construction slump.

628
01:29:09.030 --> 01:29:15.270
Board Room: that has resulted In 17 stout projects in my district.

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629
01:29:16.970 --> 01:29:19.870
Board Room: I would say someone mentioned,

630
01:29:20.100 --> 01:29:24.190
Board Room: That they think it's tied to the passage of hard hats.

631
01:29:24.770 --> 01:29:27.279
Board Room: I think that is a confounding variable.

632
01:29:27.610 --> 01:29:31.950
Board Room: I think everything between Trump's tariffs, And…

633
01:29:33.010 --> 01:29:36.339
Board Room: An increase in the cost of goods and materials.

634
01:29:36.770 --> 01:29:40.040
Board Room: Has led to this untenable situation.

635
01:29:41.720 --> 01:29:44.740
Board Room: Nothing would make me happier.

636
01:29:44.950 --> 01:29:48.199
Board Room: than to see… Those projects move.

637
01:29:48.460 --> 01:29:51.559
Board Room: and provide… Much-needed housing.

638
01:29:52.100 --> 01:29:54.680
Board Room: For the people in our community.

639
01:29:55.230 --> 01:29:59.530
Board Room: Or to give others the opportunity to live here.

640
01:30:02.860 --> 01:30:06.759
Board Room: That said… We all have grab lines.

641
01:30:07.250 --> 01:30:08.470
Board Room: This is mine.

642

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01:30:09.510 --> 01:30:13.690
Board Room: I cannot, in good conscience, Support.

643
01:30:13.880 --> 01:30:17.970
Board Room: Housing, That will be built on the box.

644
01:30:18.100 --> 01:30:19.899
Board Room: Of the workforce.

645
01:30:24.980 --> 01:30:26.260
Board Room: I understand.

646
01:30:26.950 --> 01:30:28.859
Board Room: That the issue's being discussed?

647
01:30:29.320 --> 01:30:33.230
Board Room: Are above my pay grade, no pun intended.

648
01:30:33.770 --> 01:30:37.759
Board Room: This must be addressed at the state level.

649
01:30:39.330 --> 01:30:42.809
Board Room: And I would welcome any clarification.

650
01:30:42.940 --> 01:30:54.150
Board Room: As to whether density bonus law was ever intended in a way to legislate out other… social necessities.

651
01:30:54.680 --> 01:30:58.009
Board Room: Like… Health… health benefits.

652
01:30:58.160 --> 01:30:59.639
Board Room: An apprenticeship.

653
01:31:00.960 --> 01:31:02.280
Board Room: And a good wage.

654
01:31:04.620 --> 01:31:07.970
Board Room: And so… Until that happens.

655

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01:31:08.910 --> 01:31:11.220
Board Room: I have no choice tonight.

656
01:31:11.760 --> 01:31:15.110
Board Room: but to lay off supporting this appeal. Thank you.

657
01:31:18.490 --> 01:31:20.530
Board Room: Thank you, Councilmember Kisarwani.

658
01:31:22.150 --> 01:31:37.279
Board Room: Thank you very much, Madam Mayor. Thank you to the planning staff for the presentation. Thank you to the appellant and applicant for your presentations, and thank you to the public commenters. I have great sympathy for the workers that we heard from tonight.

659
01:31:37.440 --> 01:31:51.750
Board Room: And I'm gonna be really brief with my comments. Unfortunately, I don't think the legal justification is there to deny the concessions, as some of my colleagues have explained, in terms of what the language of the state law says.

660
01:31:51.790 --> 01:32:11.189
Board Room: As others have noted, the city is not in a position to take on the costs of expensive litigation when we know at the outset, we are unlikely to prevail. Just to be really clear, the city is projecting a $30 million budget deficit. With a deficit of that size, we have to consider layoffs.

661
01:32:11.230 --> 01:32:22.560
Board Room: So, you know, we are in a really dire situation, we are going to be facing really difficult decisions, and so I think we have a difficult decision to make tonight, to think about

662
01:32:22.660 --> 01:32:37.670
Board Room: what kind of legal exposure we might be putting our city, at risk of, and what the costs of that may be, and how we're gonna balance that with all of the other reductions that we may have to make. So I implore my colleagues to think about that.

663
01:32:37.740 --> 01:32:42.980
Board Room: When we, weigh, what to do on this. Thank you very much.

664
01:32:44.550 --> 01:32:49.309

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Board Room: Thank you, Councilmember. Next, moving on to Councilmember O'Keefe.

665
01:32:53.490 --> 01:32:54.750
Board Room: I don't have a speech.

666
01:32:55.140 --> 01:32:59.230
Board Room: I don't really even know what to say, to be honest.

667
01:33:00.070 --> 01:33:02.000
Board Room: I am a union member.

668
01:33:02.750 --> 01:33:07.189
Board Room: My job provides me and my family with excellent health insurance.

669
01:33:07.630 --> 01:33:09.750
Board Room: Which is a human right, by the way.

670
01:33:10.320 --> 01:33:16.599
Board Room: The people who work hard to build our much-needed housing deserve the same.

671
01:33:19.510 --> 01:33:25.339
Board Room: We've been handed a, a pickle here. This is a very difficult…

672
01:33:25.490 --> 01:33:27.820
Board Room: Difficult situation we've been placed in.

673
01:33:30.860 --> 01:33:38.060
Board Room: My read on the legal issues is that our hands are tied. That's… that's my assessment of what we can do.

674
01:33:38.470 --> 01:33:40.730
Board Room: I do not like this.

675
01:33:40.960 --> 01:33:47.790
Board Room: I joined the plea, already stated well by many of my colleagues, that the state government figured this out.

676
01:33:47.930 --> 01:33:49.189

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Board Room: This is a big problem.

677
01:33:49.580 --> 01:33:54.150
Board Room: For my own moral comfort, I… I'm gonna abstain.

678
01:33:54.850 --> 01:34:00.969
Board Room: I really want to stand with my union brothers and sisters as much as possible. I don't know if there's anything more we can do.

679
01:34:01.430 --> 01:34:03.049
Board Room: So, that's all I have to say.

680
01:34:05.080 --> 01:34:06.879
Board Room: Thank you, Vice Mayor Lenopara.

681
01:34:07.540 --> 01:34:11.969
Board Room: Thank you. And I really want to thank everyone for being here tonight.

682
01:34:12.630 --> 01:34:29.380
Board Room: This, development is in my district, it's one block from the university, and it includes 32 affordable units. And given how many students and young people and people across the city experience homelessness and overcrowding every day, I'm excited for the development.

683
01:34:29.490 --> 01:34:36.429
Board Room: And I also fundamentally believe that every single resident in our country deserves healthcare, a living wage, and a safe working site.

684
01:34:36.540 --> 01:34:40.620
Board Room: And we cannot leave behind the workers that make these developments possible.

685
01:34:41.610 --> 01:34:50.090
Board Room: And sometimes public policy will be in conflict, with one another, and governments will have to make a decision over what they're gonna value.

686
01:34:50.420 --> 01:35:00.289
Board Room: And it is in the best interest of everyone that legislators weigh these decisions, these sometimes conflicting interests, against one another, and make a decision that they think

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687
01:35:00.430 --> 01:35:03.630
Board Room: Is what their jurisdiction needs.

688
01:35:04.220 --> 01:35:09.610
Board Room: And this body has made many of those decisions in the past, often without unanimous support.

689
01:35:09.850 --> 01:35:22.090
Board Room: And our vote tonight is not one of those decisions. We are not making that policy trade-off choice with the decision in front of us right now. The question that we are being asked is whether these arguments hold up to state law.

690
01:35:22.600 --> 01:35:33.580
Board Room: And I think the density bonus law is very clear in placing the development of affordable housing over all else. It states, this chapter shall be interpreted liberally in favor of producing the maximum number of total housing units.

691
01:35:34.080 --> 01:35:43.320
Board Room: And so I believe that the density bonus is clear in its current iteration, and if that's a policy that we need to change, then we need to change it at the state level.

692
01:35:43.510 --> 01:35:47.859
Board Room: And I don't think that we have another choice right now.

693
01:35:48.610 --> 01:35:49.470
Board Room: Thank you.

694
01:35:50.680 --> 01:36:05.490
Board Room: Thank you. I think all of my council colleagues have spoken already, and so I really want to thank all of you, both the applicant appellant, and also to our own city staff for taking the time to do the analysis and make a recommendation to us.

695
01:36:05.490 --> 01:36:17.599
Board Room: I also want to thank, the union for being so organized with their public comment. That's something that gets major bonus points for me, so thank you all for organizing that. And also just for your words. It's…

696

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01:36:17.600 --> 01:36:36.070
Board Room: it is really challenging to hear, about the personal impacts and what you all are experiencing, and I do really support apprenticeship programs and want to thank those of you who have actually helped to build our city. As was said many times, we are a pro-housing council, and housing is something that is incredibly important to us.

697
01:36:36.070 --> 01:36:51.610
Board Room: And, I agree with the importance of the hard hat ordinance, both for worker safety, ensuring healthcare, and also skilled training. I think that those programs are essential. However, as was said by many of my colleagues, it's clear that these concessions are legally allowed under state law.

698
01:36:51.660 --> 01:37:10.990
Board Room: I do want to encourage the developers to partner with the unions, with the trades to provide the strongest working conditions for this project. I know that that was mentioned, but I think it is really important that, if you are going to come and say that you care about that, that you have those conversations as well.

699
01:37:10.990 --> 01:37:16.389
Board Room: By working with the building trades, you ensure high-quality, skilled, and well-trained workers.

700
01:37:17.720 --> 01:37:30.370
Board Room: I think when we look at what's happening on the state level, we can see that the state government really wants to make sure that we have more housing. That is the entire purpose of being able to waive these in the first place. And, if we do…

701
01:37:30.540 --> 01:37:48.019
Board Room: think that this is something that's important at the state level, then we need the state to weigh in. So, I want to echo those comments of my colleagues. I think many of you have stated that already, and I know that this is very challenging for a lot of you, so I want to thank you all for your comments. So is there a…

702
01:37:48.140 --> 01:37:49.920
Board Room: emotion.

703
01:37:51.680 --> 01:37:59.050
Board Room: I'll make a motion to adopt a resolution denying, or approving the appeal, or, I'm sorry, denying the appeal.

704

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01:37:59.160 --> 01:38:02.569
Board Room: And affirming the Zoning Adjustments Board decision to approve the use permit.

705
01:38:03.170 --> 01:38:03.990
Board Room: Second.

706
01:38:05.360 --> 01:38:07.010
Board Room: Can you take the role, please, Clerk?

707
01:38:08.400 --> 01:38:17.620
Board Room: On the motion, which includes the correction read into the record by staff, Councilmember Kessner-Wani. Yes.

708
01:38:18.110 --> 01:38:19.540
Board Room: Taplin? Abstain.

709
01:38:20.400 --> 01:38:22.109
Board Room: Bartlett, abstain.

710
01:38:22.450 --> 01:38:24.190
Board Room: Shregon? Abstain.

711
01:38:24.630 --> 01:38:25.570
Board Room: O'Keefe?

712
01:38:26.550 --> 01:38:27.560
Board Room: Abstain.

713
01:38:28.260 --> 01:38:30.090
Board Room: Blackaby? Yes.

714
01:38:30.310 --> 01:38:32.229
Board Room: Luna Parra? Yes.

715
01:38:32.370 --> 01:38:38.040
Board Room: Humbert? Yes. And Mayor Ishii? Yes. Motion carries. Thank you.

716
01:38:39.670 --> 01:38:48.280

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Board Room: Okay, so before we move on to the next item, I do want to give us a 10-minute stretch break, so we're gonna do that, and we will be back soon. Thank you.

717
01:40:32.100 --> 01:40:44.690
Board Room: Okay, folks, our break is over. I will please ask you to take your seats. If you're having a conversation, please take your conversation outside. Thank you.

718
01:40:44.800 --> 01:40:45.870
Board Room: Have a seat!

719
01:40:47.300 --> 01:40:48.779
Board Room: Come on, guys.

720
01:40:49.580 --> 01:40:50.760
Board Room: Thank you!

721
01:40:51.130 --> 01:41:03.720
Board Room: Alright, very good. So we are back from our break. Thank you all so much for waiting. We are moving on to item numbers 3A and 3B. That's the Zoning Adjustment Board Appeal 2029 University Avenue.

722
01:41:03.830 --> 01:41:09.429
Board Room: And, also 2029 University Avenue, both…

723
01:41:10.050 --> 01:41:22.280
Board Room: One of them is Use Permit Application ZP2024-0182, Student Housing Oriented, and the other is Use Permit Application ZP20240181, multifamily.

724
01:41:22.400 --> 01:41:24.379
Board Room: Alright, staff, please take it away.

725
01:41:24.680 --> 01:41:30.089
Board Room: Thank you again, Mayor. Presenting again for staff on this item is Niluk Karamzatikan.

726
01:41:31.890 --> 01:41:34.350
Board Room: And I think she's just pulling up the deck now.

727
01:41:38.920 --> 01:41:39.990

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Board Room: to share.

728
01:41:40.200 --> 01:41:41.470
Board Room: I lost it. Oh.

729
01:41:41.730 --> 01:41:44.770
Board Room: While you're doing that, I can say we're officially opening our public hearing.

730
01:41:50.710 --> 01:41:51.510
Board Room: Oh, here.

731
01:42:01.390 --> 01:42:02.060
Board Room: Bye.

732
01:42:04.340 --> 01:42:15.989
Board Room: Good evening again. My name is Nilukarim Zadagon, and the projects before you are the appeal of the ZAB approval for Use Permit ZP2024-

733
01:42:16.140 --> 01:42:25.660
Board Room: 0181, and use permit ZP2024-0182 at 2029 University Avenue.

734
01:42:26.220 --> 01:42:32.159
Board Room: There are two separate permit numbers and project schemes proposed for this site.

735
01:42:32.680 --> 01:42:40.390
Board Room: One scheme is oriented toward multifamily housing, and the other is oriented toward student housing.

736
01:42:40.620 --> 01:42:53.730
Board Room: Two different applications were submitted for this site in order to provide the developer with maximum flexibility in identifying equity partners and securing project financing.

737
01:42:54.950 --> 01:43:05.530
Board Room: In this presentation, I will go over both project scopes, project timelines, density bonus information, appeal issues, and staff recommendation.

738
01:43:07.610 --> 01:43:17.400

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Board Room: The project site is located along University Avenue, west of Shaddock Avenue, within the Downtown Mixed-Use District, or CDMU Outer Core.

739
01:43:17.840 --> 01:43:21.240
Board Room: And within the city's downtown area plan.

740
01:43:25.570 --> 01:43:38.509
Board Room: Both projects… both projects propose to demolish the existing two-story commercial building and a 10-car garage structure on a 12,385 square foot lot.

741
01:43:38.620 --> 01:43:47.159
Board Room: And to construct a 23-story, 256 feet tall, approximately 191,000 square foot residential building.

742
01:43:47.670 --> 01:43:55.969
Board Room: In the upcoming slides, I'll be describing the two proposed schemes, which have approximately the same building envelopes.

743
01:44:00.190 --> 01:44:12.340
Board Room: The multifamily oriented scheme would be containing 240 dwelling units, including 18 very low income and 18 moderate income units for 100% density bonus.

744
01:44:12.630 --> 01:44:23.820
Board Room: The student housing-oriented scheme would be containing 160 dwelling units, including 12 very low-income and 12 moderate-income units for 100% density bonus.

745
01:44:26.700 --> 01:44:41.909
Board Room: Shared program in both schemes are the ground floor residential program that includes the lobby, bike room, mail room, as well as the trash room, back of house service areas, and utilities.

746
01:44:43.140 --> 01:44:53.709
Board Room: 2,900 square foot community spaces, 2200 square foot fitness center, and 2,055 square foot roof deck is provided on level 23.

747
01:44:54.520 --> 01:45:01.250
Board Room: 29 off-street parking spaces are located on the second, floor garage, and…

748

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01:45:01.350 --> 01:45:07.499
Board Room: There is… there are 167 long-term bike parking spaces available.

749
01:45:10.800 --> 01:45:30.140
Board Room: Building envelopes are approximately the same. Units are larger within the student-oriented housing, making this design include less total number of units, 160 units in the student housing-oriented scheme versus 240 units in the multifamily scheme.

750
01:45:32.120 --> 01:45:36.439
Board Room: Other program differences in the two schemes are the unit types.

751
01:45:36.720 --> 01:45:42.450
Board Room: Number of bedrooms, density bonus numbers, and number of short-term bike parking spaces.

752
01:45:43.820 --> 01:45:56.129
Board Room: Multifamily oriented design program includes 240 dwelling units that include AD studios, 60 junior one-bedrooms, 60 one-bedrooms, and 42 bedrooms.

753
01:45:56.630 --> 01:46:05.919
Board Room: And that's for a total of 280 bedrooms. Student-oriented design program includes 160 dwelling units, that includes 60 studios.

754
01:46:06.020 --> 01:46:15.079
Board Room: 21 bedrooms, 23 bedrooms, and 64 bedrooms, for a total of 380 bedrooms.

755
01:46:16.810 --> 01:46:30.270
Board Room: This project was submitted in December 2024. SB330 pre-application vested the project in January 2025, and the use permit application was deemed complete in May 2025.

756
01:46:31.830 --> 01:46:42.320
Board Room: Both project designs, were reviewed by the DRC on October 16, 2025, and the DRC had a favorable recommendation to the ZAP.

757
01:46:42.730 --> 01:46:47.900
Board Room: This, public hearing tonight is the fourth meeting of the project.

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758
01:46:53.940 --> 01:47:02.130
Board Room: Under the city's density bonus procedure, the base project for the student housing scheme is 80 units.

759
01:47:02.270 --> 01:47:05.759
Board Room: As the maximum allowable density for the site.

760
01:47:05.880 --> 01:47:13.220
Board Room: The base project and the resulting 23-story proposed project both have an average unit size of 1,200 square feet.

761
01:47:13.530 --> 01:47:21.630
Board Room: By providing 12 very low-income and 12 moderate-income units on-site, which is 30% of the 80-unit-based density.

762
01:47:21.950 --> 01:47:30.229
Board Room: The project is eligible for a 100% density bonus, or 80 additional units for a total of 160 units.

763
01:47:31.990 --> 01:47:38.450
Board Room: Under the City's density bonus procedure, the base project for the multifamily scheme is 120 units.

764
01:47:38.670 --> 01:47:48.040
Board Room: As the maximum allowable density for the site, the base project and the resulting 23-story proposed project both have an average unit size of

765
01:47:48.160 --> 01:47:50.120
Board Room: 801 square feet.

766
01:47:50.940 --> 01:47:55.520
Board Room: By providing 18 very low-income and 18 moderate-income units on site.

767
01:47:55.740 --> 01:48:08.759
Board Room: Again, 30% of the 120 unit base density, the project is eligible for a 100% density bonus, or 120 additional units for a total of 240 units.

768
01:48:11.020 --> 01:48:15.760

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Board Room: Both projects are requesting 3 concessions and a number of waivers.

769
01:48:16.170 --> 01:48:23.759
Board Room: Concessions requested on these projects are exemption from the apprenticeship requirement.

770
01:48:24.060 --> 01:48:34.980
Board Room: Healthcare expenditure and bird-safe building. Waivers on the project are usable open space, height, Set back.

771
01:48:35.120 --> 01:48:41.120
Board Room: Building width over 120 feet height, and projections above height limit.

772
01:48:46.530 --> 01:49:01.289
Board Room: On December 1, 2025, the Building and Construction Trade Council of Alameda County and the Northern California Carpenters Regional Council filed an appeal of the ZAB's decision to approve both projects.

773
01:49:01.600 --> 01:49:08.899
Board Room: Appellant's, detailed appeal issue letter is attached to the staff report, and I have a summary of appeal points.

774
01:49:08.960 --> 01:49:24.039
Board Room: And I will go over each separately. Appeal Issue 1, the provisions regarding apprenticeship requirements and healthcare expenditures are not appropriate subject of a concession because they do not pertain to development standards.

775
01:49:25.310 --> 01:49:31.569
Board Room: Staff responses that a concession can be used to reduce the cost of building affordable housing.

776
01:49:31.930 --> 01:49:43.750
Board Room: And according to the definition, it can be a reduction in site development standard, or a modification of zoning code requirement, or any other regulatory incentive.

777
01:49:46.300 --> 01:49:53.270
Board Room: Appeal Issue 2, the requested concessions would not result in identifiable and actual cost reductions.

778

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01:49:53.660 --> 01:49:58.660
Board Room: Staff responses that, according to the applicant, the requested concessions

779
01:49:58.770 --> 01:50:08.430
Board Room: For exemption from apprenticeship requirements and healthcare expenditures would result in cost saving as presented.

780
01:50:08.560 --> 01:50:22.129
Board Room: And the city could reject the concession upon a finding that they would not result in identifiable and actual cost reduction. However, the requested concessions would result in a total cost reduction of…

781
01:50:22.560 --> 01:50:36.679
Board Room: $4,732,000 for the applicant, and the city has no information to make findings otherwise, and therefore cannot make a finding based on substantial evidence that this exception applies.

782
01:50:40.060 --> 01:50:46.970
Board Room: Appeal Issue 3, the concessions would have a specific adverse impact upon public health and safety.

783
01:50:47.190 --> 01:50:54.940
Board Room: staff responses that the city may deny concessions only if it can make findings supported by substantial evidence.

784
01:50:55.100 --> 01:51:00.860
Board Room: That the concession would cause a specific adverse impact on public health or safety.

785
01:51:01.960 --> 01:51:10.540
Board Room: State law defines specific adverse impact as a significant, quantifiable, direct, and unavoidable impact.

786
01:51:10.760 --> 01:51:18.000
Board Room: Based on objective written health or safety standards in effect when the application was deemed complete.

787
01:51:18.250 --> 01:51:37.010
Board Room: Staff concludes that appellants have not provided sufficient evidence showing the decisions would create such an impact, and the city itself does not have other evidence that would support making this finding. Therefore, staff advise that the city cannot make a finding based on substantial evidence that this exception applies.

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788
01:51:37.450 --> 01:51:41.100
Board Room: For reasons stated in Appeal Point 1, 2, and 3, staff

789
01:51:41.500 --> 01:51:49.280
Board Room: Find that these concessions are appropriate, and that the city cannot make the factual finding necessary to deny… to deny them.

790
01:51:56.060 --> 01:52:12.229
Board Room: Tonight, staff recommends that the Council conduct a public hearing and adopt a resolution to deny the appeal and approve Use Permit ZP-2024-0181 and ZP-2024-0182. Thank you.

791
01:52:14.860 --> 01:52:16.130
Board Room: Thank you very much.

792
01:52:16.380 --> 01:52:21.400
Board Room: We will now move on to the appellant. We'll have a 5-minute presentation.

793
01:52:27.150 --> 01:52:31.360
Board Room: Let's see… Am I waiting for an invitation to share my screen?

794
01:52:35.670 --> 01:52:36.340
Board Room: Okay.

795
01:52:52.680 --> 01:52:54.110
Board Room: Says it's rejoining.

796
01:52:57.410 --> 01:52:58.790
Board Room: And it's spinning.

797
01:53:00.740 --> 01:53:02.380
Board Room: There… let's see…

798
01:53:13.210 --> 01:53:17.580
Board Room: As I'm a novice at this, I don't see you share my screen

799
01:53:25.750 --> 01:53:27.360
Board Room: We've been doing too much Teams.

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800
01:53:57.270 --> 01:53:58.679
Board Room: Thank you for bearing with me.

801
01:54:01.650 --> 01:54:03.520
Board Room: That doesn't want to seem to share.

802
01:54:03.880 --> 01:54:06.570
Board Room: Share my presentation version, but there we are.

803
01:54:07.790 --> 01:54:23.240
Board Room: Thank you for bearing with me. My name is Scott Littlehale, and I'm Executive Research Analyst for the North Coast States Carpenters Union, formerly NorCal Carpenters Union, now representing carpenters, drywallers, and other construction craft workers between Bakersfield, California, all the way up to the Canada border.

804
01:54:23.630 --> 01:54:29.280
Board Room: And here tonight to talk about this high-rise project at 2029 University Avenue.

805
01:54:29.400 --> 01:54:38.689
Board Room: The Hardhats Concession specifically, which we argue, if granted, will hurt workers and, importantly, degrade public health and safety.

806
01:54:40.250 --> 01:54:53.209
Board Room: We've already covered healthcare expenditures and apprenticeship fee-out waivers. These are not union standards. These are distinct from union standards. And the claims made by the,

807
01:54:53.380 --> 01:54:54.770
Board Room: Development proponent?

808
01:54:54.890 --> 01:55:00.990
Board Room: We argue are non-credible and unsubstantiated about their costs.

809
01:55:01.960 --> 01:55:04.309
Board Room: We ask, in particular.

810
01:55:04.560 --> 01:55:14.080

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Board Room: to remand the ZAB to request corrected supported documentation, given those unsubstantiated and, we argue, erroneous estimates.

811
01:55:14.280 --> 01:55:15.960
Board Room: And we ask that

812
01:55:16.260 --> 01:55:27.829
Board Room: Perhaps the staff develops some capacity on doing cost-benefit analysis of things that have such clear, direct, substantial, significant, adverse impacts on public health and safety.

813
01:55:28.200 --> 01:55:35.620
Board Room: We also ask, or I ask, that the Council go on record officially with the legislature about taking

814
01:55:35.760 --> 01:55:42.100
Board Room: Labor standards passed by a local ordinance off the density bonus concessions menu.

815
01:55:42.720 --> 01:55:49.130
Board Room: I want to spend one minute On the real stakes, for construction workers in California.

816
01:55:49.280 --> 01:55:51.990
Board Room: Of not having adequate healthcare and training.

817
01:55:53.180 --> 01:56:02.379
Board Room: You probably already know that construction workers face some of the highest injury rates, including fatal injury rates, that are 4 to 5 times higher than all other working people.

818
01:56:03.450 --> 01:56:08.770
Board Room: But those 10 deaths per 100,000 construction workers are dwarfed by deaths of despair.

819
01:56:09.440 --> 01:56:16.950
Board Room: Dwarfed by deaths from overdose, dwarfed by deaths by suicide. What's the connection? Lack of training, injury.

820
01:56:17.460 --> 01:56:25.280
Board Room: Addiction to painkillers, substance use combined with low job security, low pay and household income, job stresses.

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821
01:56:25.760 --> 01:56:33.260
Board Room: On top of that, Lowest among all major occupational groups of healthcare coverage

822
01:56:33.880 --> 01:56:44.889
Board Room: On top of that, 25% of the workforce, due to immigration status, being ineligible for any of the social insurance benefits, including the unemployment insurance that was mentioned earlier.

823
01:56:45.300 --> 01:56:46.690
Board Room: Not to mention SNAP.

824
01:56:46.790 --> 01:56:56.780
Board Room: Other, other forms of benefit. 63% lower average employer expenditures for residential construction workers compared to non-residential construction workers.

825
01:56:57.170 --> 01:57:03.999
Board Room: These low-road model outcomes are what Hard Hats was designed to combat.

826
01:57:04.880 --> 01:57:10.520
Board Room: Through investment in training and retention promoting health insurance, health insurance coverage.

827
01:57:11.910 --> 01:57:16.330
Board Room: It's not a union standard, but it is designed to reduce financial stress.

828
01:57:16.760 --> 01:57:24.759
Board Room: Diminished turnover of the construction workforce, which we hear repeatedly we need so badly, increase skills retention, and boost productivity.

829
01:57:26.560 --> 01:57:35.679
Board Room: The applicant's cost documentation, we believe, is definitely unsubstantia… unsubstantiated, and with a little bit of math, clearly erroneous.

830
01:57:37.180 --> 01:57:53.590
Board Room: You see before you on the screen, and in hard copies that were distributed, the simple costs of taking what was put in the record

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by the applicant in terms of costs for healthcare under hard hats and apprenticeship, and dividing it by 240 multifamily units.

831
01:57:54.720 --> 01:58:14.590
Board Room: do a little bit of division, and you estimate that that would be 2,500, over 2,500 construction craft work hours per unit. I'm sorry, that's not credible. That's 30% higher than an average across 14 different Alameda County A1 projects that we have wage records and hours records for.

832
01:58:15.140 --> 01:58:20.749
Board Room: And it also has a hidden assumption that there is 0% of this high-rise work

833
01:58:20.940 --> 01:58:27.309
Board Room: Performed by a contractor that has health… has made commitments to health benefits.

834
01:58:27.510 --> 01:58:30.779
Board Room: Could be union or non-union, or that has

835
01:58:31.050 --> 01:58:33.600
Board Room: Made commitments to some training.

836
01:58:33.940 --> 01:58:39.230
Board Room: at the low, low rate of $3.10 an hour, according to the HardATS ordinance.

837
01:58:39.880 --> 01:58:48.830
Board Room: questions that this Council would ask is, were any baseline training or health expenses deducted from net costs? I've heard things all over the map tonight.

838
01:58:50.050 --> 01:58:56.309
Board Room: But the implication of what was put into the record is that that number is zero. And that's just not credible.

839
01:59:00.050 --> 01:59:04.710
Board Room: If they aren't going to contribute anything, Shouldn't we ask, why not?

840
01:59:05.000 --> 01:59:06.549
Board Room: And at what cost?

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841
01:59:06.800 --> 01:59:08.960
Board Room: public health and safety.

842
01:59:11.250 --> 01:59:12.739
Board Room: With that, I'll conclude. Thank you.

843
01:59:20.170 --> 01:59:23.560
Board Room: Okay, can the applicant come up, present, please?

844
02:00:01.110 --> 02:00:02.839
Board Room: I don't have a share screen yet.

845
02:00:10.260 --> 02:00:10.990
Board Room: Thank you

846
02:00:33.690 --> 02:00:35.069
Board Room: Oh, here we go, found it.

847
02:00:52.570 --> 02:00:53.689
Board Room: Ready? Oh, yeah.

848
02:00:54.840 --> 02:01:14.230
Board Room: Good evening again, Madam Mayor, members of the City Council. Thank you, staff, for all the time and energy that's gone into, your work to get us here. Very briefly, I want to introduce Travis Brooks, our project council, because that's really what these issues are turning on. I will say, though, that…

849
02:01:14.230 --> 02:01:33.059
Board Room: Thank you for the reminder from the Planning Director earlier. You don't need me to substantiate our numbers. Your consultant did that for you a year and a half ago, when they said there'd be a 20% lift on construction projects with the imposition of these ordinances. With that, let me turn it over to Travis, and we'll walk you through the rest.

850
02:01:34.820 --> 02:01:40.879
Board Room: Great, thank you, Mark, and thank you all for your time tonight, and thank you for the time that you've all spent to come here tonight.

851

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02:01:41.210 --> 02:01:47.540
Board Room: I think it's really important to frame the, narrowness of the issues being considered on this appeal.

852
02:01:47.750 --> 02:01:52.369
Board Room: We're not here to question the virtues or goals of the Hardhats Ordinance.

853
02:01:52.570 --> 02:02:05.570
Board Room: And we're not asking you to eliminate or nullify the hard hats ordinance. Regardless of the outcome of this appeal, the hard hats ordinance will still apply throughout the city to market rate projects.

854
02:02:05.640 --> 02:02:13.399
Board Room: Commercial projects, and to all projects where concessions, to reduce or eliminate the hard hats provisions are not asked.

855
02:02:14.120 --> 02:02:30.449
Board Room: The narrow question in this appeal, instead, is what does state housing law require the city to do in response to my client's three requests for incentives that it is entitled to request under state law?

856
02:02:30.490 --> 02:02:42.750
Board Room: In exchange for the significant expense, it is incurring to provide dozens of critically needed affordable housing units.

857
02:02:43.090 --> 02:02:45.799
Board Room: And we talked about that first requirement.

858
02:02:45.940 --> 02:03:01.499
Board Room: that, an incentive must result in actual and identifiable cost reductions. We've done that here. These incentives will result in approximately $5 million in cost reductions. That certainly clears the state law threshold.

859
02:03:01.620 --> 02:03:07.009
Board Room: If it's anywhere near that range, for an incentive or concession to be appropriate.

860
02:03:07.120 --> 02:03:16.379
Board Room: And there's case law that says, it's the Schreiber case, the 2021 case out of LA, that said, you know, by virtue of asking for an incentive.

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861
02:03:16.570 --> 02:03:22.390
Board Room: A presumption actually arises that the incentive will result in cost reductions.

862
02:03:24.030 --> 02:03:26.000
Board Room: Next slide.

863
02:03:27.420 --> 02:03:36.429
Board Room: So, density bonus law incentives and concessions are intended to be, flexible and broadly defined, broadly applied.

864
02:03:36.640 --> 02:03:47.280
Board Room: With regard to development standards that can be reduced or eliminated. It's any site or construction condition that applies to a housing project pursuant to any ordinance or other

865
02:03:47.480 --> 02:03:48.900
Board Room: condition…

866
02:03:49.030 --> 02:04:02.909
Board Room: adopted by the local government. I do think that clearly that doesn't only apply to physical site constraints, it also complies to locally adopted policies. But if that weren't enough, even if that

867
02:04:02.910 --> 02:04:19.069
Board Room: even if the hard hats ordinance did not fall under the definition of a development standard that could be eliminated through an incentive, we certainly fall within the other regulatory incentives category that we could ask for under K3 of the density bonus law.

868
02:04:19.740 --> 02:04:34.919
Board Room: We've already talked about the interpretive rules that bind you here. The density bonus law directs you to interpret it liberally in favor of producing the maximum number of housing units. There are also pro-housing interpretive rules under the HAA that are applicable here.

869
02:04:35.130 --> 02:04:53.189
Board Room: So as laudable, as the label provisions of the, Hardhat's ordinance are, for our purposes here, those label provisions just do not enter the calculus as to whether or not you can, deny the incentives that we've requested. Next slide.

870
02:04:53.900 --> 02:04:54.590

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Board Room: Great.

871
02:04:55.330 --> 02:05:10.830
Board Room: And again, we've already talked about the narrow, health and safety findings that can be made. There are very specific requirements, that must be met to make that finding. There are 4 very specific requirements and words that all have meanings that must be met.

872
02:05:10.830 --> 02:05:16.530
Board Room: So, specific adverse impact must be significant, quantifiable, direct, and unavoidable.

873
02:05:17.310 --> 02:05:36.320
Board Room: as the record shows, those four requirements have not been met here to deny the incentive request, and they must be based on objective written public health and safety standards that existed at the time we submitted our preliminary application. As laudable as the hard hats ordinance is, it is not a health and safety standard, it is a labor policy document.

874
02:05:36.340 --> 02:05:41.220
Board Room: The OSHA provides the health and safety standards, and with that, I'll pass it on to Mark.

875
02:05:42.310 --> 02:05:58.180
Board Room: Thank you again. Just a last slide here, showing the potential revenues generated by the project. And there was a question earlier about permit fees, impact fees, versus the cost of hard hats. You can see that the city's fees are…

876
02:05:58.260 --> 02:06:05.860
Board Room: quite high compared to the overall cost of the hard hats requirement. Thanks, Mark. Yeah, that's… Thank you very much, everybody.

877
02:06:07.250 --> 02:06:11.919
Board Room: All right, very good. Do we have any Council questions?

878
02:06:12.100 --> 02:06:15.050
Board Room: Okay. Oh, it's not working.

879
02:06:17.160 --> 02:06:26.780
Board Room: Okay, well, you can start while I try to fix it. Go ahead, Councilmember. Thanks, I have 3 questions for staff. Could a developer waive, living wage ordinance?

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880
02:06:28.050 --> 02:06:29.240
Board Room: as a concession.

881
02:06:35.050 --> 02:06:53.080
Board Room: Short answer is yes, and it goes back to the definition of concession. Government Code Section 65915K3, that says any other regulatory incentive can be a concession.

882
02:06:58.320 --> 02:07:06.679
Board Room: Okay, so this project is, is waiving the, Bird Safe Glass could… could someone waive…

883
02:07:06.940 --> 02:07:11.240
Board Room: any, green building codes you might adopt.

884
02:07:11.350 --> 02:07:13.710
Board Room: At some point, beyond what the C requires.

885
02:07:19.320 --> 02:07:27.380
Board Room: The answer to that, I believe, is no. The green building standards are part of the building code, so the project would have to comply.

886
02:07:28.600 --> 02:07:39.260
Board Room: Thank you. And then, so for… for… CEO manager, or whomever, were there to be,

887
02:07:40.040 --> 02:07:44.680
Board Room: proposed amendment to state law. Would it be possible for Council to be…

888
02:07:45.040 --> 02:07:47.820
Board Room: Alerted in the occasion, if that happens.

889
02:07:48.990 --> 02:07:55.040
Board Room: Or, Navy, we might get that from our state lobbyists. Sure, absolutely. Yeah, great, thank you.

890
02:07:55.860 --> 02:07:56.690
Board Room: Thank you.

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891
02:07:57.050 --> 02:08:02.759
Board Room: Thank you. Councilmember Trey Gob. Thank you so much,

892
02:08:03.260 --> 02:08:12.229
Board Room: While this is not the direct subject of the appeal, we are seeing this whole matter de novo, so…

893
02:08:12.830 --> 02:08:23.579
Board Room: I'm noticing that one of the requested concessions is around board-safe glass for $400K for staff.

894
02:08:24.510 --> 02:08:37.370
Board Room: Have there been other instances you have absorbed of, waivers, sorry, concession requests of Port Safe class on a project since the inception of the Board Safe Ordinance?

895
02:08:38.150 --> 02:08:42.429
Board Room: Yes. I don't have the exact addresses, but I do remember.

896
02:08:42.940 --> 02:08:48.520
Board Room: Concession on BirdSafe. Okay. For the… applicant…

897
02:08:49.050 --> 02:08:55.699
Board Room: how did you base the 400K number, and did you consider, what…

898
02:08:56.070 --> 02:09:06.830
Board Room: Were there any alternatives that may have, been equivalent on cost to, not having part-safe class? Are there any…

899
02:09:07.320 --> 02:09:13.080
Board Room: Board-safe treatments that you looked at that might not add cost to the project?

900
02:09:14.060 --> 02:09:30.260
Board Room: There are no bird-safe treatments that we're aware of that don't add cost to a project. The one that you're looking at with that cost assumption is as inexpensive as it gets. You can go everything from applying stickers to the glass, little dots.

901
02:09:30.330 --> 02:09:45.569
Board Room: 4 inches on centers, all the way up to fritted glass, which is quite expensive. That's not a reflection of a fritted glass

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requirement, that's more of a reflection of the stickers, the dot stickers requirement, like you see on the B of A building downtown.

902
02:09:49.380 --> 02:09:52.020
Board Room: Okay, thank you. Councilmember Blackaby.

903
02:09:53.020 --> 02:09:57.700
Board Room: Thanks, Madam Mayor, and thank you to the applicant and the appellant and the staff for being here.

904
02:09:57.900 --> 02:10:12.649
Board Room: kind of like in the first round, I just wanted to kind of dive into some of the cost numbers a little bit. On the apprenticeship requirements, you know the cost saving of about $1.9 million. I was just going back, again, to hard hats and refreshing my recollection on what the apprenticeship requirement is.

905
02:10:12.810 --> 02:10:29.710
Board Room: And it says, under the ordinance for covered projects, contractors must perform at least one of the following. Either participate in a joint labor management apprenticeship program, or use a state-approved program, or contribute to training funds making hourly contributions to the Apprenticeship Council for every apprenticeable craft hour.

906
02:10:29.820 --> 02:10:32.830
Board Room: When you calculated this number, kind of what was the…

907
02:10:34.180 --> 02:10:38.910
Board Room: what was the cost? How did you determine that cost? Was it against one of those three?

908
02:10:42.530 --> 02:10:45.590
Board Room: I'm gonna ask my client to come up. Sure.

909
02:10:48.300 --> 02:10:55.390
Board Room: I was wondering if one of them is… is it… if you used a joint labor management apprenticeship program, is that more economically viable?

910
02:10:55.900 --> 02:11:03.189
Board Room: Good evening, everybody. My name is Paul Menzies. I'm CEO of Laconia Development. We are the developer of this project.

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911
02:11:03.740 --> 02:11:12.930
Board Room: These estimates were, put together by, looking at actual cost estimates for the BirdSafe glass.

912
02:11:13.480 --> 02:11:18.339
Board Room: And the other estimates were put together in conjunction with, contractors.

913
02:11:18.810 --> 02:11:22.269
Board Room: Many of whom we've worked with before, who provided information.

914
02:11:22.500 --> 02:11:23.459
Board Room: To us.

915
02:11:24.120 --> 02:11:27.159
Board Room: So I guess my question is, is, so are we saying that…

916
02:11:29.240 --> 02:11:36.240
Board Room: Participation in joint labor management… again, I'm just trying to find out, is there a way of meeting the apprenticeship requirement under hard hats?

917
02:11:36.380 --> 02:11:38.390
Board Room: That costs less than $1.9 million.

918
02:11:38.520 --> 02:11:42.140
Board Room: Does anyone know the answer to that? I don't believe so.

919
02:11:42.580 --> 02:11:47.330
Board Room: Do you know if that… what is the cheapest method of meeting that?

920
02:11:47.600 --> 02:12:00.789
Board Room: Am I asking the question the right way? What I'm trying to figure out is, which of these three prongs is the most economical way of reaching it, and is that what this $1.9 million reflects? That's what I'm trying to ask. I'm sorry, I don't quite understand that question.

921
02:12:02.010 --> 02:12:10.830

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Board Room: Yeah, no, under the three options, this test is for the least expensive option identified by the contractor. Right, which… just so I know, which one…

922
02:12:10.930 --> 02:12:14.729
Board Room: I don't recall off the top of my head which one it was. Okay.

923
02:12:20.020 --> 02:12:22.440
Board Room: Do you have follow-up questions?

924
02:12:22.610 --> 02:12:25.140
Board Room: No, I just wish… I wish we knew that, but,

925
02:12:25.300 --> 02:12:29.169
Board Room: Okay, that's all I got, thanks. Okay, thank you, Councilmember Bartlett.

926
02:12:31.010 --> 02:12:35.899
Board Room: Thank you, Madam Mayor. And, this question, I guess, is for the team.

927
02:12:36.030 --> 02:12:43.379
Board Room: What's our methodology for measuring, impacts on, public health and safety?

928
02:12:53.450 --> 02:13:00.529
Board Room: I mean, I think we rely on objective standards that are established In the municipal code?

929
02:13:01.360 --> 02:13:08.329
Board Room: And so if the appellant in this case had identified objective standards in the municipal code that

930
02:13:08.650 --> 02:13:12.149
Board Room: Would constitute health and safety?

931
02:13:12.260 --> 02:13:13.270
Board Room: Risks?

932
02:13:14.350 --> 02:13:28.950
Board Room: we would have taken those into consideration, but I'm not… they didn't raise specific objective standards, and I haven't been… I

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don't think our team has been made aware of any specific codified objective standards for health and safety that would be

933
02:13:29.090 --> 02:13:31.299
Board Room: Violated by the project.

934
02:13:35.180 --> 02:13:41.409
Board Room: Thank you. I'm gonna go to Councilmember… actually, Vice Mayor Lenopara, because you've asked already, so…

935
02:13:41.560 --> 02:13:51.829
Board Room: We'll come back to you. Thank you. I think the appellant wanted to respond to Councilmember Blackaby's question, so I just wanted to give them the opportunity to do so.

936
02:13:52.250 --> 02:14:05.200
Board Room: Thank you very much, Councilmember Black Aviv. I mean, there were, as you noted, 3 different options. So even if one were not to take advantage of the training opportunities of participating in an apprenticeship.

937
02:14:05.350 --> 02:14:11.580
Board Room: One could contribute to an existing state California Apprenticeship Council training fund.

938
02:14:11.980 --> 02:14:19.300
Board Room: At the rate of $3.10 per apprenticeable construction craft work hour.

939
02:14:19.500 --> 02:14:26.480
Board Room: That's where I did the math on the earlier slide, to get to the, in my opinion, inflated.

940
02:14:26.620 --> 02:14:41.340
Board Room: estimate of hours worked by construction craft workers per unit, compared to a range of other projects that we've looked at. So it's either that the workers that they're intending to hire are less productive, by 30%,

941
02:14:41.720 --> 02:14:43.499
Board Room: Or the number is incorrect.

942
02:14:45.830 --> 02:14:53.880

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Board Room: The value of the apprenticeship is harder… is harder to calculate, and that goes to the methodology questions that were asked earlier.

943
02:14:54.900 --> 02:14:56.250
Board Room: Thank you for the opportunity.

944
02:14:58.150 --> 02:15:03.410
Board Room: Did you have a question, or that was… No, that's okay. Okay, thank you. Going back to Councilmember Treyko.

945
02:15:04.400 --> 02:15:10.470
Board Room: Oh, I had the same question as the Vice Mayor. It's been answered. Very good. Any other questions?

946
02:15:11.110 --> 02:15:17.229
Board Room: Okay, thank you all for answering our questions. We will now move on to public comment.

947
02:15:17.560 --> 02:15:27.479
Board Room: So if you have public comment on items 3A or 3B, this is the Zoning Adjustment Board's appeal for 2029 University Avenue, please come on up.

948
02:15:27.720 --> 02:15:45.019
Board Room: Oh, hello. Ready to go. You're ready, go ahead. Again, EJ Sire. So, I mean, if $400,000 for Bird Safe Glass is gonna make or break a project, and that's what's needed for a concession, I think there's other issues there, but, I just want to point out a couple of different things. You know, everybody keeps talking about state legislature needs to fix this stuff and all that.

949
02:15:45.410 --> 02:15:57.970
Board Room: if everybody just did what the bosses said and waited for the bosses to fix stuff, then there would never be a union at all anywhere. 1598 University is really a good example of what happens when you don't have any standards whatsoever on any of these projects.

950
02:15:57.970 --> 02:16:09.889
Board Room: 1598 University, I use that example because we were told, we, as in everybody in this room right now, was told multiple times that we were gonna have local workers on those projects, we were gonna have good, good, good paying jobs on those projects.

951

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02:16:09.990 --> 02:16:19.070
Board Room: Every license plate except for one, the day that we were all out there on a strike line, many of you sitting up on the dais right now, every license plate except for one was from the state of Washington.

952
02:16:19.420 --> 02:16:24.289
Board Room: So, congratulations, developer, you employed people from Washington to take that money back with them.

953
02:16:24.410 --> 02:16:29.440
Board Room: And I also want to point out, the litigation keeps getting mentioned over and over again. Who's gonna litigate?

954
02:16:29.760 --> 02:16:34.929
Board Room: It's not… it's not this side of the room with safety vests on, it's the other side that would be threatening that. Thank you. Thank you.

955
02:16:40.129 --> 02:16:50.300
Board Room: Real quick, Daniel Gregg, North Coast States Carpenters Union. Just to kind of speak to Igor's point, earlier that all these stalled projects…

956
02:16:50.469 --> 02:17:00.120
Board Room: are because of hard hats. Hard hats only applies to the three projects we're gonna talk about tonight, so none of these projects in his district or throughout are stalled because of hardhats.

957
02:17:00.740 --> 02:17:05.090
Board Room: And I just wanted to bring up the point that this is,

958
02:17:05.379 --> 02:17:16.250
Board Room: new to me that a city will allow a developer to have two different applications for the same parcel. I've seen where cities have decided what they want to see there on two different proposals.

959
02:17:16.660 --> 02:17:25.690
Board Room: But I can imagine that they're gonna do a real tight cost analysis on these projects about where they can get the highest rents, and that's the one they're gonna go with.

960
02:17:26.160 --> 02:17:27.459
Board Room: Absurd.

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961
02:17:28.360 --> 02:17:39.679
Board Room: Second, at the ZAB hearing for 2029 University, Mark Rhodes stated that contractors on this project would provide healthcare to the construction workers 5 minutes after he stated the project had not gone out to bid yet.

962
02:17:39.780 --> 02:17:44.029
Board Room: He said the workers would have healthcare, but not as good as the unions.

963
02:17:44.250 --> 02:17:47.129
Board Room: Thank you. Thank you.

964
02:17:47.370 --> 02:17:55.350
Board Room: Just wondering if the development team is willing to make that commitment tonight, that all the workers on this project will have some form of healthcare.

965
02:17:56.000 --> 02:17:56.919
Board Room: Thank you.

966
02:18:03.799 --> 02:18:11.509
Board Room: Good evening again. I'm Tim Frank, and I'm also carrying a minute from Jesse Perales. Thank you.

967
02:18:11.920 --> 02:18:15.849
Board Room: I want to note that…

968
02:18:16.639 --> 02:18:19.899
Board Room: The construction trades are fundamentally pro-housing.

969
02:18:20.129 --> 02:18:24.759
Board Room: You know, we don't get a single work hour out of any job that doesn't get built.

970
02:18:24.990 --> 02:18:31.160
Board Room: So, we want jobs to be built. We support the idea of actually building to a very aggressive envelope.

971
02:18:31.430 --> 02:18:39.429
Board Room: We would like to see a lot of building, homes built near the campus. We just want it done under fair circumstances.

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972
02:18:40.410 --> 02:18:41.369
Board Room: Now, Mark?

973
02:18:41.780 --> 02:18:51.590
Board Room: suggested that if we have a labor standard and we apply it here, nothing will get built in Berkeley. And I actually would suggest that

974
02:18:51.700 --> 02:19:02.549
Board Room: That isn't… that doesn't comport with reality. We actually have one of the strongest rail markets in the East Bay. This is a place where we could actually establish a standard and make it work.

975
02:19:03.480 --> 02:19:11.400
Board Room: If you look at this from a statewide perspective, the last time California built 200,000 homes in a year was in the 1980s.

976
02:19:11.750 --> 02:19:15.720
Board Room: When a majority of the residential construction work were…

977
02:19:15.940 --> 02:19:19.859
Board Room: A majority of the workers were union workers.

978
02:19:22.180 --> 02:19:24.639
Board Room: Since then, we've seen union busting.

979
02:19:24.820 --> 02:19:28.410
Board Room: From the people on the other side of this aisle here tonight.

980
02:19:29.010 --> 02:19:36.730
Board Room: And… We haven't built more than a little over 100,000 any time in recent history.

981
02:19:36.930 --> 02:19:45.590
Board Room: The suggestion that actually accommodating the system that actually pays a wage high enough to allow people to afford housing without an additional public subsidy?

982
02:19:45.709 --> 02:19:50.149
Board Room: That requires the kind of training that also makes the job site safe.

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983
02:19:50.560 --> 02:19:52.610
Board Room: And improves productivity.

984
02:19:53.560 --> 02:19:55.320
Board Room: That just doesn't hold up.

985
02:19:55.650 --> 02:20:08.830
Board Room: What we need is public policy that is demanding an approach that is actually fair to the workers, that will help build the strong workforce we need. I mean, these guys are complaining about a lack of skilled workers. Thank you. Thanks for your comment.

986
02:20:09.480 --> 02:20:10.180
Board Room: Thank you.

987
02:20:16.620 --> 02:20:23.999
Board Room: Okay, hello, thank you for having me today. Thank you, Mayor. So I want to help the…

988
02:20:24.280 --> 02:20:42.479
Board Room: the iron hats on this one, because this building is way over 5 floors, and I don't know much about buildings, but I know if you build something over 5 floors, you have to be very careful, because it can fall. So I know that much, right? The height is over the 5-foot limit, way over, so there must be all precautions taken.

989
02:20:42.730 --> 02:20:55.599
Board Room: There has to be hard hats being used, involvement of OSHA, and even extra non-hard hat helpers, if possible. If that can make it more affordable for people hiring, if you could mix the workers.

990
02:20:55.600 --> 02:21:10.259
Board Room: That way you can have some hard hats, because for a building for this big, you cannot have any mistakes, or it can fall, or it can fall on someone in maybe the next 5 years. We don't want what's happening in San Francisco to happen here, with that tilting building. We don't want that in Berkeley.

991
02:21:11.660 --> 02:21:19.810
Board Room: Also, this structure is very dull and ugly-looking. It resembles a prison-style building. Thank you. Thank you.

992

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02:21:23.810 --> 02:21:43.410
Board Room: Thank you, Mayor and Council Members. My name is Vince Segru with Sheet Metal Workers Local 104. I just want to thank everyone here tonight. I know this is a special called meeting. It's a Monday night, we're all frustrated to be here to varying degrees, but I want to thank all of your leadership on this. What I want to say is that what we've been served tonight by the applicant was pure disrespect.

993
02:21:43.410 --> 02:21:50.089
Board Room: We, when we were framing the Hardhats Ordinance, it took years to meticulously craft this.

994
02:21:50.090 --> 02:22:02.679
Board Room: to be amenable to development, to make sure that it worked and it penciled, to the point where we were working numbers for months. They came here tonight, and we clearly just heard a bunch of BS.

995
02:22:02.890 --> 02:22:04.529
Board Room: They can't tell you

996
02:22:04.680 --> 02:22:13.989
Board Room: how much… with which apprenticeship works for them, how they got their numbers, they worked with some contractors. That's the nature of this industry.

997
02:22:14.140 --> 02:22:27.869
Board Room: It is underhanded, people pay under the table, people are undocumented and exploited oftentimes, particularly in this city, and that's why we're here. Thank you all so much for your time tonight, and I'm sorry we were disrespected. Thank you.

998
02:22:33.050 --> 02:22:45.860
Board Room: Hi, Stephanie Lind again, Berkeley resident, Local 22 member. I was not planning on speaking twice or staying this long, because it's past my kid's bedtime, I'm a single mom, but I feel passionate, so I'm… I stayed, I'm here.

999
02:22:46.040 --> 02:22:54.150
Board Room: I just want to say, this feels very fishy. I work for a general contractor, so I do interface with the cost items.

1000
02:22:54.200 --> 02:23:09.720
Board Room: We have, you know, brought down our budgets by millions of dollars sometimes, by value engineering. Why is it… why are we looking at

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it with such a narrow lens and allowing them to only look at taking away healthcare rights, taking away training.

1001
02:23:09.930 --> 02:23:18.860
Board Room: I can tell you someone who's not trained is gonna take twice as long to do the job. That's gonna be costly. So why are we looking at it with such a narrow lens? Let's be more creative.

1002
02:23:18.870 --> 02:23:34.890
Board Room: Let's think about the other, you know, concessions that could be offered, like value engineering, looking at the budget as a whole, and not narrow it down to taking the things away that Berkeley cares about. All Berkeley residents care about this.

1003
02:23:35.080 --> 02:23:36.440
Board Room: Thank you.

1004
02:23:42.820 --> 02:23:44.490
Board Room: Are you speaking as well?

1005
02:23:45.090 --> 02:23:46.829
Board Room: Nope. Other public comment?

1006
02:23:46.970 --> 02:24:00.180
Board Room: Okay, he's behind the… he's behind the camera guy, so… Alright, is there any public comment online for items 3A or 3B, Zoning Adjustments Board Appeal 2029 University Avenue?

1007
02:24:01.410 --> 02:24:06.150
Board Room: Alright, two hands raised. First is… Kelly Hammergren.

1008
02:24:11.430 --> 02:24:15.590
kelly hammargren: Okay, I just sent you this document.

1009
02:24:16.430 --> 02:24:26.320
kelly hammargren: Root-safe glass loss of nature is detrimental to our public health, and at the Zoning Adjustment Board meeting on November 13th.

1010
02:24:26.700 --> 02:24:39.410
kelly hammargren: Mark Rhodes handed in an estimate of project costs of $391,326 for the art ordinance.

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1011
02:24:39.570 --> 02:24:54.019
kelly hammargren: And an estimate of $400,000 for bird-safe glass. The board members, that is a difference of $8,674 to protect birds from birds… from bird glass collisions.

1012
02:24:54.470 --> 02:25:03.150
kelly hammargren: The board members ask the developer to make a swap, and to put in the bird-safe glass.

1013
02:25:03.340 --> 02:25:09.379
kelly hammargren: And that if funds were found later, to add in the public art later.

1014
02:25:09.590 --> 02:25:14.069
kelly hammargren: The developer declined, and I asked…

1015
02:25:14.070 --> 02:25:15.070
Board Room: Kelly.

1016
02:25:15.070 --> 02:25:16.779
kelly hammargren: Request that tonight.

1017
02:25:16.780 --> 02:25:18.759
Board Room: Kelly, I'm sorry, your time is up.

1018
02:25:20.350 --> 02:25:28.530
Board Room: Thank you. Okay, next is… Joey… From… EBHO?

1019
02:25:33.010 --> 02:25:36.049
Board Room: Hold on a sec… There you go.

1020
02:25:38.030 --> 02:25:40.340
Joey Flegel-Mishlove (EBHO, he/him): Hi, my name's Joey, I'm not…

1021
02:25:40.390 --> 02:25:54.800
Joey Flegel-Mishlove (EBHO, he/him): here on behalf of EBHO, that is just, must have been wrong… logged on to the wrong Zoom account. I'm sorry about that. But my name's Joey, I'm, the chair of the Berkeley Commission on Labor, that's the capacity over here. I'm sorry I deleted the meeting and log back in on Zoom.

1022

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02:25:54.830 --> 02:26:08.950
Joey Flegel-Mishlove (EBHO, he/him): Yeah, once again, we, urge the Council to stand behind the hard half subordinates, to the extent possible, and if that means, you know, engaging in legal action to defend the ordinances that we pass in our city.

1023
02:26:08.950 --> 02:26:21.080
Joey Flegel-Mishlove (EBHO, he/him): Because we believe in them, we think that's worth doing, we think it's worth taking a strong stand, and we support, you know, all the calls on the developers to stand by strong.

1024
02:26:21.120 --> 02:26:32.229
Joey Flegel-Mishlove (EBHO, he/him): labor practices, whatever the results of the hearing is tonight, we hope that they will, you know, uphold strong labor standards, provide healthcare for their workers, and so on. Thank you.

1025
02:26:33.940 --> 02:26:42.709
Board Room: Thank you, Joey. Thanks for being here with us virtually. I think that that's it for our public comment online. Yes, that's it, just those two.

1026
02:26:43.150 --> 02:26:48.649
Board Room: Okay, very good. Alright. Is there a motion to close the public hearing? Second.

1027
02:26:49.000 --> 02:26:55.049
Board Room: And if there's… No opposition to closing the public hearing, then we will close the public hearing.

1028
02:26:55.880 --> 02:27:02.829
Board Room: Alright, public hearing is closed. We will now move on to Council deliberations, starting with Councilmember Taplin.

1029
02:27:03.180 --> 02:27:07.570
Board Room: Yes, thank you, and thank you for everyone, to everyone for staying, so late.

1030
02:27:07.700 --> 02:27:14.890
Board Room: And Director Klein, correct me if I'm wrong, but it sounds like the city doesn't currently have adopted objective health standards.

1031
02:27:15.310 --> 02:27:16.600
Board Room: Or is that…

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1032
02:27:17.150 --> 02:27:25.440
Board Room: No, I'm sure we do have many codified objective standards related to health and safety, but,

1033
02:27:25.830 --> 02:27:28.659
Board Room: Hmm, I'm just saying that none of those… this…

1034
02:27:28.840 --> 02:27:34.569
Board Room: this project hasn't been identified to be filing any of those objective standards. Thank you.

1035
02:27:34.690 --> 02:27:45.409
Board Room: This is a novel thing we're dealing with now, but I wanted to state that I am committed to continuing the work that we began with the Hard Hats ordinance.

1036
02:27:46.850 --> 02:27:52.339
Board Room: Something Councillor Tregoop said last round really, moved me,

1037
02:27:52.940 --> 02:27:56.530
Board Room: Especially the line about… or the part about having a red line.

1038
02:27:56.990 --> 02:28:05.190
Board Room: It makes total sense for our community to advocate and fight for the rights of workers.

1039
02:28:06.060 --> 02:28:09.500
Board Room: And that's what we've attempted to do here with Hardhats.

1040
02:28:09.930 --> 02:28:17.020
Board Room: And people are well within a reason to be suspicious and wary of

1041
02:28:17.120 --> 02:28:19.839
Board Room: Efforts to exploit workers for profit.

1042
02:28:20.330 --> 02:28:29.170
Board Room: If we hadn't spent our entire lives seeing that, I don't think people would be so concerned tonight, or in general.

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1043
02:28:29.350 --> 02:28:32.480
Board Room: Ends.

1044
02:28:34.160 --> 02:28:39.230
Board Room: I do want to see the state come into alignment with us.

1045
02:28:39.330 --> 02:28:42.710
Board Room: Around hard hats and the applicability of the ordinance.

1046
02:28:49.750 --> 02:28:56.360
Board Room: I know that… I know that perhaps there's not votes to… deviate from the stock recommendation.

1047
02:28:56.580 --> 02:28:57.470
Board Room: Tonight.

1048
02:28:58.140 --> 02:29:00.129
Board Room: But… I…

1049
02:29:01.110 --> 02:29:06.719
Board Room: when I hear everyone, when I look into the crowd, I see so much of my own family.

1050
02:29:07.790 --> 02:29:12.570
Board Room: But there's no way I could… I could… I could…

1051
02:29:13.120 --> 02:29:15.980
Board Room: set aside my principles this evening. Thank you.

1052
02:29:17.330 --> 02:29:19.059
Board Room: Thank you. Councilmember Treykop?

1053
02:29:21.070 --> 02:29:30.930
Board Room: Thank you, for the record, I will… Largely echo, without repeating.

1054
02:29:31.370 --> 02:29:44.459
Board Room: the comments that I made for the previous item, which was SAB Appeal 2425 Durant Use Permit Application ZP24-0162.

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1055
02:29:45.170 --> 02:29:50.060
Board Room: I did want to add, one thing.

1056
02:29:50.300 --> 02:29:54.690
Board Room: since 1598 University came up.

1057
02:29:55.440 --> 02:30:03.409
Board Room: And I was on the ZAB when I was, I believe, part of a unanimous ZAB when we approved that project.

1058
02:30:04.470 --> 02:30:10.560
Board Room: And in my two years on the Council, no project.

1059
02:30:12.020 --> 02:30:18.979
Board Room: before or since. Well, I don't know what happened before, but certainly no project.

1060
02:30:19.590 --> 02:30:28.299
Board Room: has, been grounds for more… Warranted constituent complaints.

1061
02:30:28.700 --> 02:30:31.380
Board Room: Where various parts of the code

1062
02:30:31.600 --> 02:30:36.659
Board Room: Continued to be violated over and over by the applicant.

1063
02:30:37.110 --> 02:30:44.659
Board Room: And in my previous line of work, As an engineer, as a safety engineer.

1064
02:30:44.980 --> 02:30:49.509
Board Room: Generally, when there were multiple violations, it,

1065
02:30:49.780 --> 02:30:55.370
Board Room: Demonstrated a systemic issue, which could often be corrected with training.

1066
02:30:56.350 --> 02:31:01.230
Board Room: And that means… We had approved a project where…

1067

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02:31:01.960 --> 02:31:04.399
Board Room: The crafts that were working on it.

1068
02:31:04.980 --> 02:31:11.840
Board Room: Presumably for not receiving the training that, frankly, they deserve, nor our community.

1069
02:31:13.740 --> 02:31:18.260
Board Room: I… My heart farts right now.

1070
02:31:19.050 --> 02:31:21.870
Board Room: I would love to see a project approved.

1071
02:31:22.000 --> 02:31:23.359
Board Room: in my district.

1072
02:31:23.540 --> 02:31:25.749
Board Room: That will actually break ground.

1073
02:31:26.630 --> 02:31:30.060
Board Room: And not be built on the backs of the workforce.

1074
02:31:31.830 --> 02:31:34.759
Board Room: For all the aforementioned reasons.

1075
02:31:35.650 --> 02:31:38.050
Board Room: I hope the state does its job.

1076
02:31:38.720 --> 02:31:48.569
Board Room: I look forward to working with Councilmember Taplin and others on this body to see what, objective standards we might need to develop as well.

1077
02:31:49.120 --> 02:31:53.110
Board Room: But I will respectfully be laying off this item as well.

1078
02:31:55.040 --> 02:31:56.700
Board Room: Thank you, Councilmember Humbert.

1079
02:31:58.140 --> 02:32:07.160

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Board Room: Thank you, Madam Mayor, and this is where I, fulfill my promise to be very brief. This appeal raises the same legal questions

1080
02:32:07.460 --> 02:32:16.509
Board Room: I addressed in my… in the prior item, regarding the scope of density bonus concessions and the specific adverse impact standard.

1081
02:32:16.600 --> 02:32:31.409
Board Room: I've reviewed independently the records for the 2029 University Avenue applications, including the distinct concessions requested, cost documentation, and testimony received on this item, and I reached the same conclusions for the same reasons.

1082
02:32:31.880 --> 02:32:46.259
Board Room: I like to incorporate by reference, something lawyers like to do, my comments on the policy and legal questions surrounding the 2425 Durant project is the basis of my reasoning for 2029 University Avenue.

1083
02:32:46.610 --> 02:32:58.240
Board Room: Therefore, I'm compelled to reject the appeal, affirm the ZAB's decisions, and grant necessary permits for the two versions of the 2029 University Avenue project. Thank you.

1084
02:32:58.360 --> 02:33:00.169
Board Room: Thank you. Councilmember Bartlett?

1085
02:33:00.830 --> 02:33:09.390
Board Room: Thank you, Madam Mayor. And not to, beleaguer the point, that I made earlier, but again, I'm not convinced

1086
02:33:09.500 --> 02:33:14.979
Board Room: that the denial of healthcare, to workers in the city of Berkeley, is not without impact.

1087
02:33:15.250 --> 02:33:16.330
Board Room: And…

1088
02:33:16.810 --> 02:33:32.730
Board Room: with that being said, without a clear record of that, whether it didn't come from the Challenger or from our own city staff, with the absence of that impact statement and that analysis, I don't feel comfortable, throwing our workers through the wind.

1089

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02:33:35.130 --> 02:33:37.259
Board Room: Thank you. Any other Council comments?

1090
02:33:39.560 --> 02:33:57.050
Board Room: Okay. I will just add my comments basically as… incorporated as before, as you were saying, Councilmember Humbert, but thank you everyone so much for coming out and for sharing your perspectives with us this evening. We really do appreciate hearing the impact. I think that's really essential.

1091
02:33:57.220 --> 02:34:00.870
Board Room: And thank you so much, as always, to staff for your work on this.

1092
02:34:01.250 --> 02:34:02.740
Board Room: Is there a motion?

1093
02:34:04.880 --> 02:34:13.470
Board Room: I'd like to make a motion to deny the appeal and affirm the Zoning Adjustments Board decision to approve use permit. Should I cite them both?

1094
02:34:14.140 --> 02:34:21.849
Board Room: Okay, ZP2024-0162 and ZP2024-0182.

1095
02:34:22.280 --> 02:34:26.020
Board Room: Second. Can we take the roll, please, Clerk?

1096
02:34:27.610 --> 02:34:29.050
Board Room: Okay.

1097
02:34:29.880 --> 02:34:39.480
Board Room: On the motion, Councilmember Kesarwani? Yes. Taplin? Epstein. Bartlett? Abstain. Trega? Abstain. O'Keefe?

1098
02:34:39.740 --> 02:34:40.830
Board Room: Abstain.

1099
02:34:40.990 --> 02:34:42.930
Board Room: Blackaby, pass.

1100
02:34:43.590 --> 02:34:45.500

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Board Room: Unapara? Yep.

1101
02:34:46.390 --> 02:34:47.870
Board Room: Humbert? Yes.

1102
02:34:48.160 --> 02:34:49.830
Board Room: Mayor Ishii? Yes.

1103
02:34:50.100 --> 02:34:52.040
Board Room: And Councilmember Blackaby?

1104
02:34:59.390 --> 02:35:00.350
Board Room: Epstein.

1105
02:35:01.630 --> 02:35:03.309
Board Room: Okay, motion fails.

1106
02:35:07.930 --> 02:35:12.040
Board Room: Staff, can you talk to us about what happens if the motion doesn't pass?

1107
02:35:12.760 --> 02:35:18.389
Board Room: If Council doesn't take action on this, then the ZAB's decision will stand.

1108
02:35:19.460 --> 02:35:20.410
Board Room: Thank you.

1109
02:35:21.360 --> 02:35:28.800
Board Room: Okay, that was the final item for this evening, since this is a special meeting,

1110
02:35:29.250 --> 02:35:32.540
Board Room: That's all we have left on here, so is there a motion to adjourn?

1111
02:35:32.810 --> 02:35:35.100
Board Room: So moved. Second.

1112
02:35:36.070 --> 02:35:41.619

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Board Room: If there's no opposition to adjourning, you will adjourn for this evening. Okay.

1113
02:35:41.790 --> 02:35:45.070
Board Room: All right, meeting is adjourned. Thank you.

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